

S I X M O N T H S

IN

AMERICA.

BY

GODFREY T. VIGNE, ESQ.

OF LINCOLN'S INN, BARRISTER AT LAW.

VOL. I.

LONDON:

WHITTAKER, TREACHER, & CO.

AVE MARIA LANE.

1832.

S I X M O N T H S

IN

AMERICA.

BY

GODFREY T. VIGNE, ESQ.

OF LINCOLN'S INN, BARRISTER AT LAW.

VOL. I.

LONDON:

WHITTAKER, TREACHER, & CO.

AVE MARIA LANE.

1832.

The Project Gutenberg eBook of Six months in America, vol. 1 (of 2)

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Six months in America, vol. 1 (of 2)

Author: Godfrey Thomas Vigne

Release date: May 22, 2026 [eBook #78724]

Language: English

Original publication: London: Whittaker, Treacher, & Co., 1832

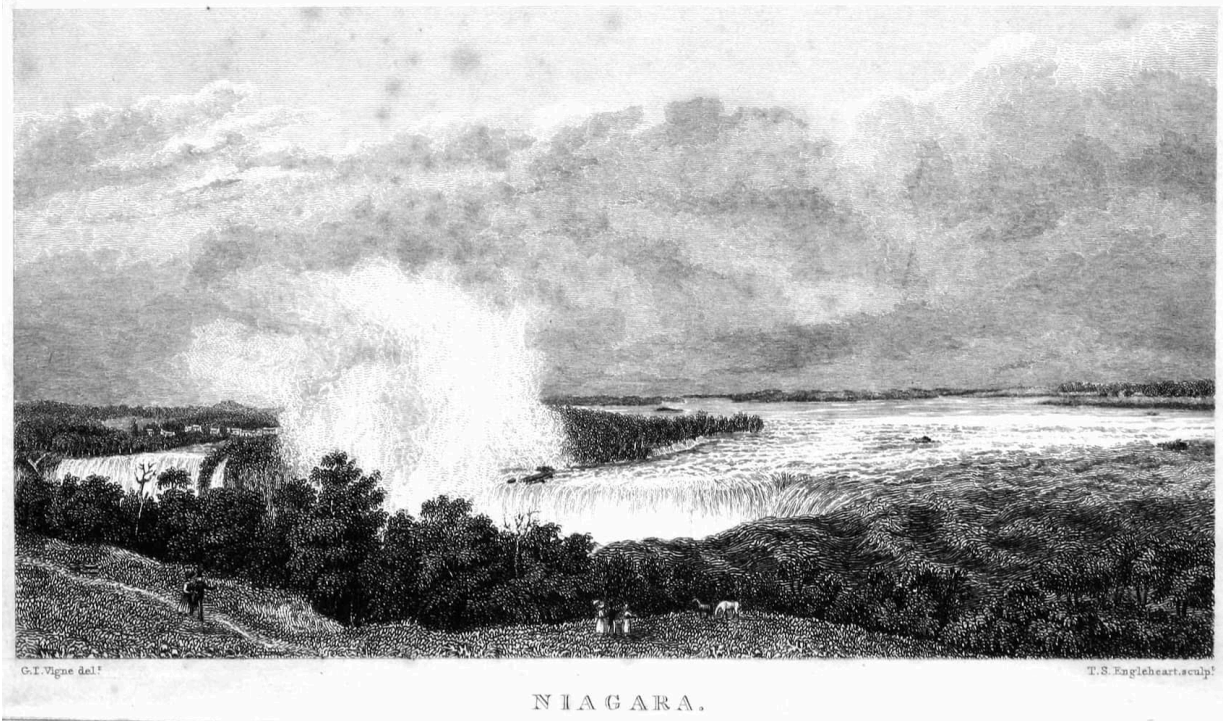
Other information and formats: www.gutenberg.org/ebooks/78724

Credits: Chris Miceli and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK SIX MONTHS
IN AMERICA, VOL. 1 (OF 2) ***

TRANSCRIBER'S NOTE

Some minor changes to the text are noted at the [end of the book](#).



G.T. Vigne del.

T.S. Engleheart sculp.

NIAGARA.

SIX MONTHS

IN

AMERICA.

SIX MONTHS

IN

AMERICA.

BY

GODFREY T. VIGNE, ESQ.

OF LINCOLN'S INN, BARRISTER AT LAW.

VOL. I.

LONDON:

WHITTAKER, TREACHER, & CO.

AVE MARIA LANE.

1832.

LONDON:
Manning and Co., Printers, 4, London House Yard,
St. Pauls.

SIX MONTHS IN AMERICA.

READER,

I will not inflict upon you the penalty of preface or dedication, being fully persuaded that you would care for neither; and therefore if you are disposed to follow me to America, I will inform you at once, that after having seen the greater part of Europe, I went on board the packet, *George Canning*, on the 24th of March, 1831, and sailed from Liverpool for New York, with my note-book, sketch-book, gun, and fishing rod—alone, unbewifed and unbevehicled, as a man ought to travel, and with the determination of being, as far as an Englishman can be, unprejudiced; and of seeing all I could of the United States in the space of about six months.

Having said this, I beg of you to remember that I do not profess to tell you what may be seen in a year. I may be allowed to mention, that the *George Canning* is one of the best of the twenty-six packets that sail from Liverpool to different parts of North America. Every possible comfort and every reasonable luxury is at the command of the passenger; and, whether he be confined to his state-room from the effects of sea-sickness, or indulging a most Atlantic appetite, and quaffing champagne to the memory of Columbus, he cannot fail at the end of his voyage to be loud in the praises of her excellent commander, Captain Allyn. We saw an average number of young whales, but contrived to miss the icebergs and the sea-serpent; and after an excellent passage of twenty-three-days (the voyage from Liverpool, at this season of the year, being scarcely ever less than thirty), we sailed through the Narrows into the splendid bay of New York. The passage so named is about three quarters of a mile in width, and defended by four or five hundred pieces of cannon. The most prominent object is a diamond-shaped fort, which appears to rise out of the water, and is called Fort La Fayette, because it fired its first salute in honour of that General, upon his arrival on the shores of America in 1824. The fort on the New Jersey side, as if in opposition to its French-named antagonist, is known by the very English name of Fort Tomkins.

On the Long Island beach is seen New Utrecht, a small sea-bathing place, and celebrated as the spot where the British troops, under the command of Sir Henry Clinton, were landed without opposition, previously to their attack of New York in 1776. Numerous vessels of different sizes that had been detained outside by contrary winds, were working their way through the Narrows at the same time, and presented a most animating spectacle. They were from all parts of the world; the sun shone full upon their white sails; the broad bright pine-streak reddened beneath his declining rays, and added a characteristic elegance to the appearance of the American ships, which taken as a class, are certainly handsomer than those of any other nation. That the trim and figure of a British merchantman are usually inferior to those of America, is owing to the circumstance of there being no tonnage-duty in America; and therefore, their ships are constructed for the carriage of a given number of tons with the greatest speed; but by the British method of rating their ships, a merchantman can be constructed so as to carry more than her legal tonnage without paying for it; of which John Bull very properly takes advantage by swelling out his ships as much as possible, so long as he can avoid the liability of being charged at a higher rate.

We had scarcely entered the bay when the wind dropped; steam-boats were plying in all directions, and one of them coming alongside, I was glad to avail myself of her assistance, and arrived at New York before sunset. Within two minutes after I had landed I found myself in the Broadway, the principal street and promenade in the city. At two o'clock on every fine day, all the fashion and too-gaily dressed beauty of New York are to be seen there. It contains the finest shops, and altogether has a very lively and city-like appearance, which, nevertheless, suffers considerably on account of the houses being mostly built of red brick. Its width, I should say, is about the same as that of Oxford-street; in length it is, or rather will be when finished, about three miles. The courts of justice hold their sittings in the city-hall, a large and handsome building of Massachusetts white marble and brown free-stone, which stands in the centre of what is called the Park, a green open space on the side of the Broadway. The prison, a gloomy-looking structure, is too conspicuous, and exceedingly handy, being so near to it that a "ponte de 'i sospiri" might be thrown across from one to the other with great effect. But it is not in the contemplation of the most refined and magnificent works of art, that the European traveller in the United States

must expect to derive his principal gratification. The public buildings in New York for the different purposes of charity, education, and commerce, are very numerous; but there are none that can lay claim to his particular attention: in a few hours, with a little assistance from a cabriolet or an omnibus, he might see all that is worth his notice in the city, considered merely as a collection of buildings, containing 200,000 inhabitants. It is the extraordinary energy and urgency of commerce that will chiefly attract his attention. The wharfs on the North river are flanked by superb steam-boats, daily and hourly employed in the conveyance of thousands; those on the East river, by double and triple lines of the most beautiful merchantmen; while the three streets which run successively parallel to them might be taken for one enormous warehouse, the pavement being nearly blocked up with merchandise from every country, and exhibiting a rattling and somewhat dangerous confusion of carts and cranes, that is quite beyond a "private gentleman's belief," till he has seen it. Although the actual numerical tonnage of the trade of New York is four times less than that of Liverpool, yet the appearance of bustle and business is far more striking at New York: the reason is, that there is so much more retail trade carried on in the latter city than in Liverpool, or any other city in the world. Innumerable boats descend the North river, laden with timber, or live and dead stock, and provisions for the markets of New York, and carry back a petty and varied cargo of wearing apparel and other necessities that are wanted in the interior.

Although Philadelphia is a larger place, the balance of trade between New York and that city is usually, if not always, in favour of New York. Imported goods sold at Philadelphia, on account of the New York merchants, are paid for in bills made payable at Philadelphia. The banks at New York discount these bills, which as they become due are satisfied on demand by payment in specie; so that there is a constant flow of hard dollars from Philadelphia to New York.

In order to see the city in perfection, the North river must be crossed, and a fine view is obtained from any of the rising grounds on the opposite bank. But to include a distant view of the city and the bay in the same drawing, I should recommend a station on Staten Island, or on the opposite heights about Gowanus. On this head the British public will soon be satisfied. Before I quitted America, I was favoured with a sight of the most exact and

admirable drawings to be used as materials for the next view at the Colosseum in the Regent's Park, which I understood was to be that of New York and its environs. It is singular that, as in London, they should all have been taken from the top of St. Paul's church. Unless I were anxious to write either an almanack or a guide-book, I think I need not here say more about New York; reserving for another place any remarks that apply generally to one city as well as another. I will merely add, that I should strongly recommend every one to visit the Museum before he commences a tour; and that the city contains two excellent theatres, of which that in the Park is the more fashionable: I heard the English version of the "Cenerentola" performed in very good style: I was delighted with the singing of our countrywoman. Mrs. Austin, and I laughed heartily at the drolleries of Mr. Hackett, who is an unrivalled mimic of the eccentricities of his countrymen. An Italian opera is confidently expected by the next season. At present the first society in New York, which is very good, is seldom to be seen at the theatre. In my ignorance, I was very much astonished the first evening I went there, at seeing a multitude of persons, who would have thought it a gross mistake not to have been taken for gentlemen, sitting occasionally in the front and almost always in the back seats of the dress circle, with their hats on, in the presence of ladies, who were scattered in different parts of the same box.

Now, New York, if not the most refined, is certainly, strictly speaking, the most fashionable place in the Union, and it is not to be wondered at, that foreigners who have just landed from Europe and who very probably go to the theatre on the first evening of their arrival, should thence imbibe strange and unjust ideas of the best American manners. I have heard that common sense is the characteristic of the Americans; and I think there is great truth in the remark; but I do not like it when it is so *very* common. These republican De Courcys are very fond of wearing their hats: I never was at church in the United States, without observing individuals (I do not say many), who would evidently have been very sorry to have been thought guilty of any impropriety, putting their hats on when the service was over, in the very body of the church. These are no trifles when considered as part of the national manners. But in the United States there is no standard for manners: their political independence is oftentimes imperceptibly identified with independence of behaviour that procures for individuals an unfavourable opinion, of which the men and their minds are alike unworthy.

It was the twenty-third of April, St. George's day, when I left New York to commence my tour; the members of the St. George's Society were going to dine together, and the huge banner of the saint was waving from one of the upper windows of the City-hotel, as I emerged from the gloomy recesses, in enormous establishments ycleped single-bedded rooms, and proceeded to the wharf where the New Brunswick steamers are to be found, and where it is coolly and most intelligibly intimated to the traveller, in very large letters, that he can have "Transportation to Philadelphia," at a very trifling expense. These steam-boats are necessarily very large; being frequently destined to carry three or even four hundred passengers: they are constructed in the best manner for obtaining the greatest proportionate space and a free circulation of air. They may fairly be said to be three-deckers. The working-beam is usually placed at a great height above the upper-deck, and the whole of the engine is so much raised that no inconvenience arises from the heat of the boilers. When one of these steamers is seen approaching from a distance, the confusion of green and white galleries gives it very much the appearance of a moving summer-house. The rapidity with which we moved across the bay procured me a constant change of scene: the banks were dotted with small villages, but I observed but few gentlemen's seats. At a distance, on the right, stands the town of Newark, a considerable place, discernible by its white steeples. We passed Perth Amboy at the mouth of the Rariton river; the first British settlement in New Jersey. The governor's house, the picquet and guard-house, can be seen from the river. The governor's house resembles a Gloucestershire spinning mill. I was landed at New Brunswick, where I found conveyances awaiting the arrival of the steamer in order to carry its passengers across the country to Bordentown. Notwithstanding that this road is one of the principal thoroughfares between New York and Philadelphia, yet I was fairly and quickly jolted into the conviction that although it was probable I should travel over many that were as bad, yet that I could not by any possibility find one that was worse. Allowances are to be made for the roads I afterwards saw, in the back settlements; but the condition of this one was really disgraceful. There was a great deal of wood on every side; but it can hardly be called forest, being what is here termed second-growth wood. A great part of these lands had been cleared by the earlier settlers, but were allowed to remain uncultivated, and to be

overgrown whenever a soil of greater fertility and sufficiently protected, was discovered in the interior of the country.

Bordentown, is a small, but neat and pretty, village on the banks of the Delaware. On the outskirts is a large and rather irregular brick building at the extremity of a court-yard, which is flanked by stabling and other outhouses, with extensive gardens and pleasure grounds behind them, laid out a l'Anglais. This is the residence of the Count Survilliers, better known, in England at least, as Joseph Buonaparte. I was provided with an introduction to his Excellency, and paid him a morning visit. His reception of me was exceedingly courteous. The instant he appeared, I was most forcibly struck with the very strong resemblance he bore to the later portraits of Napoleon. His person, I should say, was rather larger; the expression of the eye was the same, though more subdued; the same hair, the same shaped head, and the same contour of feature generally, with a darker complexion, and a good set of teeth. I should say, the principal difference was observable in the mouth, which seemed more inclinable to the jocose than the sanguinary. After some conversation, which was carried on in French, and turned chiefly on the subject of European travel, his Excellency showed me his pictures, which are numerous and interesting. He has several fine Murillos, and a most beautiful Madonna by Vandyke. He has many portraits of his own family; among these is one of Napoleon in his coronation robes, and the well-known picture of the First Consul on horseback, crossing the Alps. I felt an emotion which I will not attempt to describe, when, as we passed round the room, he paused before the latter picture, and drew my attention to it, remarking that it was the original, by David. The cabinet of statues and mosaics is also very fine, and the collection altogether by far the best in America. His Excellency occasionally mixes in society both at New York and Philadelphia, and talks without reserve of his former situation, "Quand j'étais roi d'Espagne." "Dans mes belles affaires," are occasionally introduced in his conversation. By his advice I subsequently mounted the observatory in his grounds. Thence I enjoyed a very fine view of the country on the opposite side of the Delaware, whose broad and rapid stream was flowing beneath me; on the left, the river seemed to lose itself among the distant woods of Pennsylvania; on the right, at a distance of about six miles, is Trenton, made notorious by the daring passage of the Delaware, and the subsequent defeat and capture, of a body of Hessians, by General Washington, on the night of

the 25th of December, 1776, during a violent storm, and when the danger of the revolutionists was at its crisis.

Bordentown is about twenty-six miles from Philadelphia. The next day I proceeded to that city in a steam-boat, which stopped for passengers at every considerable village on the well-wooded, but flat and uninteresting, banks of the river. At length Philadelphia makes its appearance, stretching for nearly three miles along the western side of a bend or angle of the river. This view is certainly a fine one, but it would be much improved by the appearance of a few more steeples or lofty structures. From the water two or three only are visible above this immense assemblage of red houses; and yet the city contains nine episcopal churches, a great number of public buildings, and charitable institutions without end.

Great attention is paid to the education of the poorer classes: the constitution of Pennsylvania declaring, "That the legislature shall, as soon as convenient, provide by law for the establishment of schools, in such manner that the poor may be educated without expense."

Philadelphia has been often described. The streets cross each other at right angles: those running parallel with the river are numbered, second, third, fourth, &c.; the others usually bear the name of some fruit or tree. The word street is usually omitted: in describing the way, a person would tell you that the place you were looking for was in Walnut, below fifth; Sassafras, above second; Mulberry, between seventh and eighth, &c. These streets run over a distance of two miles, from the Delaware to the Schuylkill river, which enters the Delaware about nine miles to the south of Philadelphia. The Bank of Pennsylvania is a small building, but elegantly designed from the Temple of the Muses, on the Ilyssus, near Athens.

The new Mint of the United States was unfinished, but promised to be a chaste and beautiful building, on a larger scale, from the same model. On the 4th of July, 1776, the Declaration of Independence was signed, and afterwards read from the steps of the State-house, where the state courts of justice are now held. The room in which this took place had been fitted up for La Fayette in 1824, as the most appropriate place for levee tenure; but when I saw it, it was occupied by workmen, who had instructions to replace every thing as it was when it acquired its present reputation.

The Academy of Fine Arts much exceeded my expectations. Although the most conspicuous pictures were those of American academicians, yet here and there the eye was attracted by a Vandyke, a Rubens, a Guercino, and a Salvator Rosa, or some good copies from them. There were a few landscapes by Ruysdael, and a fine Murillo: the subject was the Roman daughter. The productions from the English school, were portraits of John H. Powell, Esq. by Sir Thomas Lawrence, of John Kemble by Sir M. A. Shee, and another of Dugald Stuart by Sir H. Raeburn. Any person conversant with the pictures of this latter artist, would have recognised this, by the usual green colouring in the back-ground. There were five admirable portraits by Mr. Stewart, the American artist, of the Presidents Washington, Adams, Jefferson, Madison, and Monroe. The best full-length portrait of Washington is that in the Fauneuil Hall at Boston; but as a half-length this is, I believe, considered the original. They were all remarkable for their easy and unsophisticated attitudes. Mr. Stewart has been dead about five years. Mr. Hardinge has also very great merit as a portrait painter; but Mr. Sully has the reputation of being the first in America. A portrait of Sir Thomas Lawrence, by that gentleman, is a most successful imitation of the style of the late president. He exhibited also an excellent full-length portrait of General La Fayette; and Mr. Tuman, a scarcely inferior artist, is at present employed in painting another, of Mr. Penn, which will occupy a place beside the General in the Hall of Independence. I also observed a composition-landscape, by Mr. Fisher, which had very great merit. It was well remarked in the preface to the catalogue, that so many of the pictures did not need indulgence, in comparison with that which had heretofore been cheerfully, and with justice, conceded to them. This was very true of a large proportion of them, but some nevertheless, needed it not a little; and in fact had no business there. It is a pity that the Americans do not take warning by the constant outcry that for so many years has been justly raised against the swarm of portraits that annually cluster on the walls of Somerset-house. They might well devote more of their time and talent to historical painting. With the exception of the "Sortie from Gibraltar," by Colonel Trumbull, and another very indifferent picture, there were, I think, no historical pieces in the room appropriated to modern events. The Americans cannot plead a want of subjects: the revolution is not half illustrated; besides, they may depend upon it, portrait painting is a very aristocratical thing after all, and should not be generally encouraged, on that account. In running over the

walls of a modern exhibition-room, the eye is fatigued by its endeavours to avoid an encounter with the features of individuals in a new character, to which many of them never had the slightest pretensions, except upon canvass.

The water-works on the Schuylkill are probably the finest in the world: they can scarcely be praised too highly for beauty of design, simplicity of construction, and real usefulness. A dam, sixteen hundred feet in length, is thrown across the river, by which the stream is backed up for several miles, and an enormous water-power thus created. The solid rock has been excavated, in order to obtain what is termed a race; and by means of huge double-forcing pumps, worked by four immense wheels, the water is thrown up into an ample reservoir, fifty-six feet above the highest ground in the city. It is calculated that each wheel and pump could raise one million two hundred and fifty thousand gallons in twenty-four hours, if allowed to play without intermission. The rising ground in the neighbourhood of the water-works affords the best and nearest general view of the city. Thence I visited the botanical gardens of Mr. Pratt, containing a very fine orangery and a choice collection of exotics, and delightfully situated on the east side of the Schuylkill, which spreads out to a great extent immediately beneath them, with banks wooded to the water's edge. In a very few years this fine scene is destined to be unnatured. By this time a rail-road is commenced, which will run from Philadelphia to Columbia, a distance of eighty-two miles: it will there join the great Pennsylvanian canal, which has been finished nearly all the way from the eastern side of the Alleghany mountains. In order to pass these, a rail-road on inclined planes, will be constructed; by which the rich mineral productions on the western slope of the mountains, consisting chiefly of iron and bituminous coal of the finest quality, will be quickly forwarded to Philadelphia in any quantity. The greatest height of the Alleghany mountains in Pennsylvania, is thirteen hundred feet. The rail-road I have mentioned, will pass at a short distance from the water-works; and therefore, in all probability, no very long period will elapse before the vicinity will become a coal-yard.

The porcelain manufactory is not far off. I was told that the material was little inferior to that of Sevres, but I found the painting indifferent. French China is still preferred, and superiority cannot yet be expected in this department.

In my way back to the city, I visited the Penitentiary of Pennsylvania. This is the most extensive building in the United States. The front is 670 feet in length—very handsome, and bearing a baronial and gloomy appearance, in the style of our old English castles. Its area is a square, with a tower at each angle of the prison wall. It is intended that eight corridors should radiate from an observatory in the centre of the area, but only three are in use at present. These contain the cells, and command a free circulation of air, and a plentiful supply of water. The only punishment adopted, is solitary confinement. This Penitentiary is too young an establishment to afford a perfect confidence in the opinions of those who are favourable to its system. The reports of the inspectors are, however, extremely encouraging. The first and present warder (Mr. Samuel R. Wood) was only appointed in June 1829. This gentleman, who is well known as a kind of second Howard in his way, has visited many of the principal prisons in Europe; and now finds employment for his talents and his humanity in, I believe, his native city. Every crime committed in the state of Pennsylvania, on this side of the Alleghany mountains, that is punishable by imprisonment at all for the space of one year or more, is to be expiated by solitary confinement within this Penitentiary. That at Pittsburg, on the Ohio, receives those whose crimes are committed on the western side of the Alleghany. Every prisoner is allowed to work at his trade; or if he have none, or one that he cannot follow in his cell, he is allowed to choose one, and is instructed by one of the overseers, who are all masters of different trades. Mr. Wood, in his last report, gives it as his opinion, that a prisoner who has two years or upwards to remain in prison, can, in his solitary cell, earn sufficient to clear all his expenses from his admission till his discharge. The Philadelphia system differs from that at Sing-sing, in the state of New York. At Sing-sing, the prisoners are brought out to work together, but are not allowed to speak to each other. At Philadelphia they never work together; and from the time of his admission, one prisoner never sees, or speaks with, another. My English ideas were not a little startled at first, when I found that high treason is expiable by solitary confinement for not less than three, nor more than six years; and that the punishment for the second offence was solitary confinement for ten years. Treason against the state of Pennsylvania is here alluded to. By the articles of the constitution, treason against the United States shall consist only in levying war against them; or in adhering to their enemies, giving them aid and comfort. No

person shall be convicted of treason unless on the testimony of two witnesses to the same overt act, or on confession in open court. Congress shall have power to declare the punishment of treason, but no attainder of treason shall work corruption of blood or forfeiture, except during the life of the person attainted. Treason against the United States is a capital offence. Murder, in the second degree, that is, murder committed in a sudden quarrel, but without malice prepense, is punished by solitary confinement at labour for three, and not more than six years; for the second offence, for a period not exceeding ten years. The punishment for burglary is solitary confinement for not less than two, nor more than ten years; for the second offence, for a period not exceeding fifteen years. For robbery, or being accessory thereto before the fact, the period is for not less than one, nor more than seven years; for the second offence, for a period not exceeding twelve years. Mayhem, kidnapping, horsestealing, perjury, &c. are all punished by solitary confinement for different periods. Almost every species of forgery, or aiding, abetting, or commanding the perpetration of a forgery, whether it be of the coin of the state, or have reference to the sale, utterance, or delivery, or having in possession the metallic plate used in the forging of any note of any bank incorporated in the state of Pennsylvania; or forging, defacing, corrupting, or embezzling any charters, gifts, grants, bonds, bills, wills, conveyances, or contracts; or defacing, or falsifying any enrolment, registry, or record; or forging any entry of the acknowledgment, certificate, or endorsement, whereby the freehold or inheritance of any person or persons may be charged; or of counterfeiting the hand or seal of another with intent to defraud; or the privy or great seal of the state of Pennsylvania, is punished with solitary confinement for a period of not less than one, nor more than seven years; and for the second offence, for a period not exceeding ten years. It is expected that few offenders will run the risk of solitary confinement for a second time.

When first received, the prisoner is left alone, and it seldom happens that he does not ask for a Bible, and work, after the lapse of a few hours. A Bible and a few other religious books are allowed him. In a few days the withdrawal of his employment is felt, and adopted as a punishment, with the most obstinate and hardened. The chaplain occasionally visits the prisoners, and on Sundays he takes a station whence the words of prayer and exhortation can be heard by every prisoner in his cell, as they echo along the vaulted roof of the corridor.

If any punishment can be said to be dignified, that of solitary confinement has a claim to that epithet. Justice to society is nobly done, not only in the removal of the prisoner in the first instance, but, secondly, by enabling him to return, as it were, to the world, a wiser and a better man. The end of solitary confinement is the reformation of the criminal, by obliging him to think who never thought before. If reflection can be awakened, and conscience can obtain a hearing, its advantages will be readily acknowledged. The prisoner is forced to commune with his own soul: the all-powerful voice of ridicule is absent and unheard; remorse is not stifled, and penitence is not put to flight, by the sneers of a dissolute companion: with no one to admire, and applaud his resolution to be “game”—to submit, is the only alternative.

In England the system could not, generally, I think, succeed. The effect of solitary confinement might be the same on the moral character of the prisoner, but unless something like a permanent means of getting a livelihood be secured to him, after his removal from the prison, the principal and best object of the punishment would not be obtained. This would be extremely difficult in a country of small extent, with a superabundant population, and a supply of labour far exceeding the demand. The regenerated offender might, perhaps, contrive to avoid observation; but if necessity compelled him to labour for his subsistence, it is probable that he would not find employment; and the necessary consequence would be, that all his good resolutions would vanish at the approach of want.

No country is so well adapted for the experiment as the United States of America. Enterprise is abroad in every direction, and labour is well paid. When the period of confinement is at an end, the criminal may wander to any corner of that vast continent,—and go where he will, the wages of industry are always at his command. He is in little fear of being recognised by his fellow-prisoners, because no prisoner is allowed to see another. His former associates in crime are dispersed, or in prison, or in the grave; and the hope that attended him in his cell is realised, by the facility of gaining a new character, and friends who are ignorant of his crime. It should be added to this notice of the Penitentiary, that every cell opens into a small paved court-yard, in which the prisoner can take exercise; and that the system has

not been found prejudicial to health of mind or body, as had been anticipated.

I visited the Museum at Philadelphia, which is said to be the best in the United States. It contains a skeleton of the mammoth; a fine collection of Indian curiosities and American animals: the most extraordinary of these is, perhaps, a specimen of the gigantic raya or ray, or devil-fish, measuring twelve feet in length, by fifteen in breadth; and weighing more than 2000 lbs. In the gallery are arranged a number of portraits, chiefly of distinguished Americans, which are said to be admirable likenesses; but certainly not valuable as paintings. I was much better pleased altogether with the museum belonging to the Academy of Natural Sciences. It is much smaller than the other, but far more scientifically arranged.

The Dock-yard at Philadelphia contained, when I visited it, a sixty-gun frigate, nearly finished; and the Pennsylvania, a four decker, with a round stern, also in an unfinished state, and destined to carry one hundred and forty-four guns. This enormous vessel is two hundred and twenty feet in length, and fifty-eight across the main-beam. Her timbers seemed light, in proportion to her immense size; they certainly do not appear to be thicker than those of an ordinary British seventy-four. The great strength of the knees, however, are said to compensate for the apparent weakness of her other timbers. There were no workmen employed upon her, and saltpetre was strewed over her wherever it would lie. She is larger than the old Santissima Trinidad, destroyed at Trafalgar; but not so large as a Turkish ship of the line, launched, I believe, since the battle of Navarino. All the guns of the Pennsylvania will be thirty-two-pound carronades on the spar-deck, and long guns on the others. Her anchor weighs more than 11,000 lbs. With such a tremendous weight of metal, it is probable that she would not be able to stand the wear and tear of the long blockades in which many of our ships were employed during the war.

The timber of the live-oak, so called from its being an evergreen, is supposed to be imperishable. This tree grows almost exclusively in the Southern States; but is annually becoming more scarce and valuable, as the extreme slowness of its growth cannot keep pace with the demand: the Americans will probably find themselves obliged to plant it, before another quarter of a century has elapsed.

The following treatment of the different kinds of timber used in the American navy is recommended in the report of the Secretary of the Navy for 1829. Live-oak should be immersed for twelve months in water, then taken up and placed under cover to protect it against sun, rain, and high winds. Its immersion is recommended by the fact that it renders it less liable to split. White-oak which is inferior to the British white, or navy-oak, should be docked about eighteen months in fresh, or two years in salt water; then taken up and sawed into such sizes as may be required, then placed under cover for about two or three years. Yellow pine should be docked about twelve months; then taken up, sawed, and covered for two years. Mast timber should be immersed and covered in mud till wanted for use. All timber ought to be cut when the greatest portion of sap is in circulation, at some time from the first of November to the end of February; it should then be immersed in water, and never taken out but early in the spring: and it was given as an opinion, that if all timber underwent this process, the ships might last double the time they otherwise would.

I went to both the principal theatres, but did not think that either they or the performances were as good as at New York. I saw Mr. Cooper, the famed American actor, in some old play, of which I forget the name. His voice is extremely good: I remember that I thought him dignified, but rather stiff, without however being the least awkward in his acting. I also saw young Burke, as Doctor Pangloss. His acting I thought admirable, and most humorous; and his violin playing is quite extraordinary for his age. His tragedy is very little inferior to his comedy.

The United States' bank at Philadelphia is a beautiful building, being a copy from the Parthenon, with such alterations as were absolutely indispensable in order to render it fit for purposes of business. It has no side columns; but the portico is a splendid specimen of the Doric. The Ionic pillars in the interior, were brought from Italy. The present United States' bank, was incorporated by Act of Congress on the 10th of April, 1816, and is chartered till the 3d of March, 1836. It paid a bonus to Government of 1,500,000 dollars. Its capital is 35,000,000 dollars, divided into 350,000 shares of 100 dollars each; 70,000 shares were subscribed by government,

which therefore became a proprietor of one fifth. After a thorough investigation of the right of Congress to pass an act of incorporation, this bank was first called into existence in the year 1791, when General Washington was president; and its charter expired in the year 1811. The two opposing parties of Federalist and Democrat had in effect began to show themselves, though not exactly by those names, in 1787. In 1790, Mr. Hamilton, the secretary of the treasury, made his celebrated report on the state of the public debts contracted during the revolutionary war. He proposed that the debts of the continental Congress and those incurred by the States individually, should be funded by the general government, and that the interest should be paid by taxes on articles of luxury and on ardent spirits. This, it was thought, would give too much power to the Federal government, in opposition to the rights of the States separately considered; and it was on account of their conflicting opinions respecting this federal measure, that the two parties who supported or opposed the new constitution, first acquired the names of Federalist and Democrat. Their first differences under these appellations, were on the bank question, which afterwards became, and is now to a certain extent, a test of political principle. Its establishment had been opposed on constitutional grounds by Mr. Jefferson and Mr. Madison; by the former in the executive cabinet, and by the latter in congress, and both distinguished Democrats. It was asserted that congress had no power to create corporations. The Federalist was in favour of a liberal construction of the articles of the constitution, and an extension of the powers thereby vested in the federal assembly or congress of the United States, in opposition to what are termed state rights, or powers claimed separately by the states in their individual capacity. The federalist was said to be friendly to Great Britain, and to be indifferent to the principles of the French revolution. He was in favour of the Alien law, by which the president was enabled to compel suspected foreigners to leave the country; and of the Sedition law, which provided for the prosecution and punishment of false and malicious accusations against the president and members of congress. In fact, these measures were passed by congress during the administration of John Adams, who succeeded General Washington, and was the second and last of the federal party elected to the office of president. The democrat regarded the principles of the federalist as far too aristocratical for the atmosphere of America. He was a strict interpreter of the articles of the constitution, and kept a careful watch, lest

the federal government, in its united capacity, should usurp any powers which he considered as the rights and privileges of individual states. Under the overwhelming influence of the democrat principles, which have been on the increase more and more from the first year of Mr. Jefferson's presidency, the federalist party have experienced a great decrease in number, and their principles have lost much of their rigidity. In fact, the two parties may be said to be nearly extinct, even in name; the terms Federalist and Democrat being rarely mentioned now.

The federalist was always the enemy of universal suffrage. He was for imposing a substantial qualification on every voter; on the principle that property, and not persons, should be represented. In Pennsylvania for instance, the right of suffrage is possessed by every freeman of the age of twenty-one years, who has resided in the state for two years next preceding, and who within that time, has paid a state or county tax, assessed at least six months before the election: and a poll tax of fifty cents per annum, confers this right upon individuals who are not in circumstances to pay any other. That corruption to a great extent is generated by this system, is admitted on all hands; it is obviously a matter of course that it should be so. Even in democratic America there are to be found thousands who readily acknowledge the real causes of their prosperity to be identified with those that have prevented this system from figuring in its real colours; and who freely admit that it proceeds from a comparative exemption from taxes; an unbounded extent of country; an admirable spirit of enterprise; a population not too large, and a consequent abundance of employment—not from the existence of a peculiar political system.

But to return to the subject of the United States' bank. When Mr. Jefferson and the democrats came into power, the renewal of the bank charter was discussed as a party question. At this period excitement was at its height; and the federalists made themselves so conspicuous by their indiscriminating opposition to those measures of commercial restriction adopted by the democrats in power, against Great Britain, in compliance with the policy of the new French government, that they were considered by a large proportion of the American nation, as the apologists for the conduct of a country already regarded in the light of a public enemy. Yet such was the general opinion of the good that had been diffused throughout the Union by the bank, that the question of the renewal of its charter, was only lost by

the casting vote of the president of the senate, and by one vote in the house of representatives. In less than three years after the expiration of the charter in 1811, the war with Great Britain having taken place in the mean time, the finances were in a state of incredible embarrassment; and the re-establishment of the United States' bank recommended by Mr. Dallas, who was then secretary to the treasury, received the sanction of Mr. Madison; and the measure passed both branches of congress during the ascendancy of that very party which was previously opposed to it.

In consequence of the non-renewal of the bank charter, bank credit to the amount of 15,000,000 of dollars was withdrawn from the public service, and a number of local banks immediately sprang up.

Freed from the salutary control of the United States' bank, they commenced a system of imprudent trading, and excessive issues, which speedily disordered the currency of the country; and notwithstanding all her resources, and all her patriotism, in the last year of the last war, the United States were on the eve of bankruptcy, solely for the want of some national institution that would have assisted the exigences of government, and supported a circulating medium of general credit throughout the Union. The loss of the United States during the three years when there was no bank, was estimated at not less than 46,000,000 of dollars, sustained exclusively by want of a sound currency and an efficient system of finance.

The United States' bank has established branch banks at twenty-two of the principal commercial cities of the Union. When it was first opened there were, as we have seen, but two parties in the country, both acting from motives purely patriotic. The number is now increased, and interest is not now, as it was then, left out of the question. The bank charter does not expire till 1836; but the sentiments of the president on the subject of its renewal, which so deeply involves the commercial happiness of the Union, cannot but be speculated upon with peculiar interest, even at this distance of time.

It is said that General Jackson is unfavourable to its renewal. In his message of 1830 he expressed an opinion, that the bank had failed in the great end of establishing an uniform and sound currency. This is supposed to have reference merely to the circumstance of the bank, not in all cases redeeming the bills issued by any one of its branches indiscriminately at all

the others. But it would be an obvious injustice to oblige the bank to any such measure: the attempt would be quite incompatible with its existence; as it is evident, that if the exchange were unfavourable in one State, and favourable in another, the flow of notes from the State where it is unfavourable, would soon suspend or contract all the operations of the bank; and the very evil of an inequality of the currency, which the establishment was designed to remedy, would be increased by a vain attempt to perform impossibilities. I need not, however, pursue this subject further; but will only add, that all reasoning and experience seem to favour a belief in the advantages which the banking establishment has conferred on the country. It is, besides, in possession of a considerable surplus fund, after deducting seven per cent., which will enable it to meet any contingences that may arise. In lieu of the United States' bank, an establishment to be termed a national bank, founded on the credit of the government and its revenues, has been proposed by General Jackson and others. Five hundred agents are employed at the present moment in transacting the affairs of the United States' bank; but the enormous increase of patronage which would accrue to the government by the establishment of the proposed National bank, would be nothing in comparison with the power that would be vested in it, from its having under its control the dispensation of bank accommodations to the amount of at least 50,000,000 of dollars. When these consequences are considered, it is difficult to conceive how such a plan could find support among the subjects of a government professing to be thoroughly democratical.

The society of Philadelphia is, taken all together, the best in the United States. The gay season is during the winter months. Balls and concerts are then frequent and well attended: in this respect I was unfortunate, as I was in that city in May—but I was partly recompensed for my loss, by the promenade in Washington Square, which, although shady enough, and prettily laid out, is not what the most fashionable promenade in Philadelphia ought to be;—and I could not but remark, that the display of beauty and elegance to be seen there about six o'clock on the afternoon of a fine day, was most richly deserving of a better place of parade. I cannot in conscience assert that, as far as it went, I thought it equal, and yet I am scarcely willing to pronounce it inferior, to the splendid cortège of Kensington gardens.

I had come to the conclusion that I should not be able to descend the Mississippi to New Orleans. By the time that I should arrive there, the extreme heats of an American summer would have been prevailing in that very unhealthy climate, and a stranger is almost certain to be attacked by fever and ague. The voyage down the river occupies five or six days; the voyage up the river is not performed in less than ten or twelve; and I was consoled by learning that the voyage is exceedingly tedious, as the low banks offer no variety of scenery for many days—so much so, that upon rising in the morning, a person might almost be persuaded he had not moved from that part of the river where he had been the previous evening. I therefore determined to make a tour through part of Pennsylvania: I had heard much of the beauty of the scenery, of the trout fishing, and “all that,” and accordingly having engaged a place in the coach to Harrisburg, the capital of the State, I started by it, at the nondescript hour of two in the morning, and arrived at Harrisburg the same evening. The road lay through a well-cultivated, but not particularly interesting country; at least I did not think so, for it rained in torrents the whole morning; and although I was inside the coach, one arm was completely wet through, in consequence of the oilskin panels being but loosely fastened. The great heat of summer renders it necessary that the conveyances should be as airy as possible; the panels, which are made either of leather or oilskin, are rolled up in dry weather; but the “gentleman in the corner” sometimes comes off very badly on a cold or rainy day. In addition to this, it must be remembered that the American coaches usually carry nine inside, and do not afford too much liberty to the legs. The three passengers who sit in the middle, lean their shoulders against a broad leather strap, which passes across the coach; and as this occasionally gets unhooked in passing over a forest road, their heads are instantly thrown in contact with the stomachs of those who are behind them.

The most considerable place we passed was Reading, which has much the appearance of a second-rate country town in England. Viewed from the Sunbury road, by which I returned to it in my way back to Philadelphia, its situation, in a fine surrounding country, appears to much greater advantage. We passed no other place of note but Lebanon; in the vicinity of which is to be found some of the finest arable land in Pennsylvania. Harrisburg is

delightfully situated on the Susquehanna. It was here for the first time I saw that beautiful river; in breadth about three quarters of a mile. Its clear and shallow stream is not really slow, but at a little distance it appears as tranquil and unruffled as the surface of a lake. Immediately opposite to Harrisburg is an island, from either side of which a long wooden bridge is thrown to the opposite bank of the river. Harrisburg is the capital of Pennsylvania, and is a thriving, neat and pretty-looking town, containing about four thousand inhabitants. The House of Assembly, or Capitol, as it is always called in America, is built on an eminence. The sittings of the senate and house of representatives of Pennsylvania were held first at Philadelphia, then at Lancaster, and subsequently for nearly the last twenty years at Harrisburg, which, from its central situation, has been found much more convenient. The chamber where the representatives hold their sittings is very large, with separate desks for every two or three members, disposed in a semicircle, in the same manner as in the French chamber of deputies. The chair in which the Speaker sits was filled by the celebrated patriot John Hancock, when he presided in the assembly, by the members of which the declaration of independence was signed in the state-house at Philadelphia. The senate and representatives had just finished their sittings, after having passed only two hundred and sixty-seven Acts. I saw a list of them. They chiefly related to internal improvements; and many of them made honourable provision for old soldiers, or the widows and families of old soldiers, who had served in the revolutionary war. An experiment, which would have been deemed serious in an older country, was on the eve of trial: an Act had been passed for levying a tax on personal property throughout the state. The bulk of the taxes had hitherto been paid by the land owners, and a new assessment made once every three years. The annual tax is at the rate of one, two, or three dollars the acre, according to the value of the land. The owner of personal property only, however, enjoyed an immunity, of which the present measure was intended to divest him, by making him pay a tax of one dollar in a thousand. Every individual will be obliged to swear to the amount of his personal property; and should he be supposed to swear falsely, an officer will be empowered to compel the production of any deed, bond, note, or bill, or of any writing being evidence of a debt owing to him. However, the general opinion seemed to be, that the graceless impost would be acquiesced in as one of fairness and necessity. On account of the enterprise of canals, railroads, and other improvements,

the state debt of Pennsylvania is larger than that of any other of the Union, amounting to 14,463,161 dollars,—the debt of New York amounting to nearly 9,000,000 dollars. The individual State debts are very likely to be increased rather than diminished, in the end; but as no State debt has in any instance been increased except for the purposes of internal improvements, the augmentation of the debt will but add eventually to the prosperity and wealth of the State. Suppose any state, New York for instance, were to borrow 4,000,000 dollars for some public work, as a canal or rail-road, at a fixed rate of interest, and that the capital borrowed were to be reimbursable in the year 1850. Such a rate of tonnage would be levied on the canal or railroad as would, after payment of the interest, leave a sinking fund available for the redemption of the capital borrowed, and the State would be left in possession of a large tract of country rendered productive and valuable on account of the additional facility afforded for the carriage of produce to market. Once only since the formation of the constitution, and during the presidency of John Adams, has a direct and general property-tax been imposed by the federal government in time of peace.

The view from the dome of the capitol at Harrisburg is very fine; but a much better is obtained from the summit of a hill about a mile behind the town, although, perhaps, the town itself is not seen to such advantage. A great part of the surrounding country is very well cultivated; corn-fields, pasture, and woodlands, are distributed over hill and hollow; and occasionally here and there is perceived a small farm-house, of a neater and more English appearance than any I had yet seen. On every side the landscape is terminated as usual by a boundless forest. The Susquehanna seems to lose itself through a gap in the Blue Mountains; and throughout the whole of its course, which is visible for a great distance, its banks and beautiful islands are clothed with the richest foliage to the water's edge. I proceeded along the north bank of the river towards Duncan's Island, and after a ride of eight or nine miles, I arrived at the gap I have just mentioned. Its scenery forcibly reminded me of the Rhine at Drachenfels. The abrupt and lofty hill on the left is not surmounted by a "castled crag," but it overhangs, perhaps, a nobler river, whose banks are covered with the forest trees of America, instead of being formally scarped for the culture of vines, trimmed like gooseberry bushes. At a short distance from the gap, the river is crossed by an enormous wooden bridge of eight arches, which is very nearly half a mile in length. The bridges in America are usually of wood, of

admirable construction, neatly painted, and covered over like many of the bridges in Switzerland. The piers are of stone of great size, and buttressed towards the stream. This bridge is the largest of the kind I have seen any where.

In the garden of the inn, or tavern, as it is usually called, is an Indian tumulus, about fifteen feet in height, hemispherical in shape, and evidently once much higher. These tumuli are to be seen in various parts of Pennsylvania, and in fact, in all parts of America; often two are found at no great distance from one another. At Liverpool, in that state, are two of them, about three quarters of a mile apart; but one had been ploughed over by the Gothic proprietor of the soil. At first it is not difficult to infer from this, that a great battle had taken place in the vicinity, and that each party had adopted this place for the burial of the dead,—that universally, and eternally distinguishing characteristic between mankind and those of the brute creation that make the nearest approaches to humanity. Where, however, they are found singly, the researches of Mr. Jefferson and of others, induce us to believe that they were heaped together upon other occasions. In one which he opened, Mr. Jefferson conjectures that there might be as many as a thousand skeletons; and appearances indicated that it had derived its origin and enlargement from a custom of collecting the bones of the dead on the spot at different times. They were deposited in layers, but in the utmost confusion of relative position; the bones of the most distant parts of the body being crowded together. Those of infants and half-grown persons were found among them. These tumuli are sometimes composed of earth, and sometimes of loose stones, like the cairn and carnedd of Scotland and Wales.

The conjecture, that they were either raised over the dead in battle, or in accordance with the custom supposed by Mr. Jefferson, is the more probable, on account of the bones being always found in quantities. The European tumuli, of whatever age or nation, have either been heaped up over the ashes of some distinguished person, or are found to contain but a few coffins, of rough-hewn and loose stone. In America, I believe, none are supposed to cover the remains of one person only, deeply buried as in Europe, under the superincumbent mass; but in the tumuli of America the external coating of earth will easily crumble away when disturbed, and will frequently discover the bones at a trifling depth beneath the surface. Arrows

and other implements of war are frequently found amongst them. The formation of these tumuli is no where understood to be a modern custom. The Indians have a feeling of reverence for them, and use them as land marks; but the most aged are unable to furnish any clue to the discovery of their antiquity. The knowledge of their own ancestors is confined to three or four generations, and nothing certain is known of the aborigines who formed these tumuli. Humboldt himself, in his "New Spain," after a learned dissertation on the subject, is obliged to admit that "the general question of the first origin of the inhabitants of the continent, is beyond the limits prescribed to history, and is not perhaps even a philosophical question." There can be no doubt that they were a distinct race, and more civilised than the wild Indians of the present day, whose Asiatic origin is also a subject of dispute. Humboldt believes that the analogy between the languages of Tartary and those of the new Continent extends to a very small number of words. He adds, that the want of wheat, oats, barley, rye, and of all those nutritive gramina which go under the name of cereal, seems to prove that if Asiatic tribes passed into America, they must have descended from pastoral people. We see in the old continent, that the cultivation of cereal gramina, and the use of milk were introduced as far back as we have any historical records. The inhabitants of the new continent, cultivated no other gramina than maize. They fed on no species of milk, though the lamas alpacas, and in the north of Mexico and Canada, two kinds of indigenous oxen, would have afforded them milk in abundance. These are striking contrasts between the Mongol and American race. However, in the Transactions of the Literary and Historical Society of Quebec, there has lately been published a "Catalogue of a few (ninety-six) remarkable instances, which induce a belief of the Asiatic origin of the North American Indians. By Major Mercer, R. A." These I recommend, as they are very interesting. Robertson says that "the Esquimaux Indians, are the only people in America who, in their aspect and character, bear any resemblance to the Northern Europeans." They differ from all the other Indian tribes in their language, disposition, and habits of life. He thence infers the probability of their having originally passed over from the North-west of Europe, and adds, "that among all the other inhabitants of America, there is such a striking similitude in the form of their bodies, and the qualities of their minds, that notwithstanding the diversities occasioned by the influence of climate, or unequal progress of improvement, we must pronounce them to be

descended from one source—the north east of Asia.” It may be here added, that Cuvier, when speaking of the mouflon of the Blue Mountains, informs us, that it is the only quadruped of any size, the discovery of which is entirely modern, and gives it as his opinion, that perhaps it is only a Siberian goat that has crossed the ice.

The junction of the Susquehanna and Juniata rivers, takes place at Duncan’s Island. The latter is a much smaller river, varying from one to two hundred yards in breadth. In some places its thickly forested banks rise to a great height above the gloomy-looking stream, whose dark placidity is occasionally disturbed by small rapids, or falls, as they are termed, though they hardly deserve the name. I observed a sunken raft, and one solitary fish-hawk (osprey). The road continues along the side of the Juniata for several miles; it then leaves it, and conducts the traveller to Lewistown. I observed nothing remarkable in this place. Its situation, however, is picturesque, as it is surrounded with abrupt hills and rising grounds of different elevation, with plenty of forest, as usual. The distance from Lewistown to a place called Brown’s Mills, is not more than five miles. Here I found an excellent country inn, kept by an Irishman, and a most delicious trouting stream, running rapidly through the woods, and emerging close to the inn. It is wadeable in every part, and swarms with trout, some of them weighing more than three pounds. Those killed with a fly, do not average more than half a pound in weight; but it is no uncommon occurrence to kill five or six dozen in two or three hours. When I was there, and in fact during the whole time I passed in Pennsylvania, the season was early, and the weather cold and unfavourable, so that I killed but very few fish. A severe walk of twenty-five miles through the forest, and across a range of hills known by the name of the Seven Mountains, brought me to Belfont; a large and thriving town, conspicuous from being placed on a hill in the midst of a very pretty country. Close to Belfont are three full mountain streams, or creeks, as they are called in America. Spring creek in particular, contains an enormous quantity of trout, of about the same size as those at Brown’s Mills; but the weather was still unfavourable, and it was all in vain that I waded down the stream for nearly four miles. I took but

seven or eight moderate-sized fish. The red hackle is considered the best general fly. The other streams are known by the names of the Bald Eagle, and Logan's creek. The former takes its name from a bald eagle's nest, that was annually built in the vicinity, or, which is more probable, from a tribe of Indians so called, who resided there. At the head waters of the other creek, is still seen the place of residence of the celebrated Mingo chief, Logan,—whose eloquent message to Lord Dunmore, is too well known to need insertion here. Many of the aged inhabitants of Belfont still remember him. His fate resembled that of Demosthenes and Cicero: he perished for his eloquence. An old officer of the United States army, who, soon after the close of the revolutionary war, was ordered to make surveys of the country watered by the Alleghany river, informed me that Logan's nephew, a remarkably fine young Indian, dined with him one day in his tent, and that he asked him what became of Logan. I killed him, was the reply. Why did you kill him?—The nation ordered it. For what reason?—He was too great a man to live: he talked so well, that although the whole nation had intended to put any plan in execution, yet, if Logan did not approve of it, he would soon gain a majority in favour of his opinions. Was he not then generally in the right?—Often; but his influence divided the nation too much. Why did they choose you to put him to death? If any one else had done it, I would certainly have killed him: I, who am his nephew, shall inherit his greatness. Will they not then kill you also?—Yes: and when I become as great a man as Logan (laying his hand on his breast with dignity), I shall be content to die! He added, that he shot him near the Alleghany river. When informed of the resolution of the council of his nation, Logan stopped his horse, drew himself up in an attitude of great dignity, and received the fatal ball without a murmur.

From Belfont I proceeded on foot over the mountains to Philipsburg, on the western slope of the Alleghany ridge. The distance was about twenty-eight miles. After walking for several hours along the side of the Bald Eagle creek, I arrived at the foot of the Alleghanies. They are composed of sandstone, and are more extensive than any in the States on this side of the Rocky Mountains, though their height is inconsiderable. The most elevated part of the ridge in Pennsylvania does not, as I have said before, exceed 1300 feet; but at the other peak, in Virginia, it rises to 3950 feet above the level of the great western rivers, being two or three hundred feet higher than Ben Lomond. The High Peak on the Rocky Mountains is the highest

mountain in the United States, and attains an elevation of 12,500 feet. Mount Washington, the highest of the White Mountains, is 6234 feet in height; Mansfield, in Vermont, the most lofty of the Green Mountains, is somewhat higher than Ben Nevis in Scotland, as it rises to 4279 feet. I ascended the Alleghany by a good road, that wound gradually up the side of the mountain, and after a walk of about three hours and a half, I was in full contemplation of the most extensive forest view I had ever yet beheld. I have seen many of the dark and impenetrable pine forests in the north of Europe, where the mountains are far higher, and the scenery proportionably grander, but I never remember a forest so interminable as that I am speaking of. One small patch of cultivation was perceivable in a very distant valley, called, I believe, Penn's Valley. The vast thickets of Norway, Sweden, and Russia, are chiefly of pine trees, and are grand and gloomy enough, but sometimes tiresome from their monotony. Nature has painted them with her usual ability; but the colouring she has employed may be compared to that of a drawing in Indian ink, equally creditable to the artist, but not so pleasing to the eye as a many-tinted picture. There are plenty of pines on the Alleghany, but there is also an immense assemblage of other trees. A lady informed me, that being desirous of sending to England specimens of the different woods of this part of the country, she collected fifty-two without any difficulty; but there are many more than these. The principal material of the American navy is, as I have before noticed, afforded by the live-oak, so called from its being an evergreen, and from its elasticity, extreme durability, and other generous properties. The leaf of this tree resembles the ilex of Spain and England, but is rather larger, and more pointed. It is not found in Pennsylvania—growing in the southern States chiefly, in Georgia and the Carolinas, whence it is conveyed to the different dock-yards of the Union.

There are here, nevertheless, more than thirty varieties of the oak, each bearing a distinct fruit: of these, the white-oak, which is inferior in quality but comes the nearest to the navy-oak of Great Britain; the red-oak, the black, and the rock, or scrub-oak, are the most common. The other trees of the forest, are usually the Spanish-chestnut (two varieties)—the horse-chestnut is not indigenous in America, but thrives well; I saw one at the Manor near Baltimore—the hickory (two varieties); the black-walnut; the American-poplar, or tulip-tree, the pride of the American forest, and growing frequently to an enormous size; yellow, white, spruce, and

hemlock pines—the larch is not found, or is rarely to be met with, in the United States: I have not seen them in the Canadas—bass-wood, or common English-lime; sugar-maple, white maple, red and white elm, willow, sassafras, black and yellow birch, ash, gum-tree, beech, iron-wood, mulberry, dog-wood, rhododendron in great quantities, kalmea, latifolia, hazel, red and white cedar, clematis, virginiana, indigo, and a great variety of ferns and wild vines.

In the autumn, or fall, as it is universally and prettily termed in America, the forest view is excessively beautiful, in consequence of the brilliant assemblage of colours exhibited by the diversity of foliage collected together. My eye roved over a constant succession of mountain and valley, and hill and hollow, all alike clothed in the glorious forest garb, whilst the more distant tints became bluer and bluer, till they faded away at the farthest verge of the horizon. The Indian had long been driven or bought out from this part of the country; but the rocks and thickets of the forest beneath me had doubtless concealed many an ambush, and witnessed many a carnage. They had responded to the sharp twang of the rifle, and re-echoed the more terrific war-whoop; but during the time that I remained on the top of the mountain, all around me was as silent as the place was solitary, with the exception of the occasional stroke from the peaceful axe of the backwoodsman, that resounded from a glade about a mile from the spot where I had sat down to rest myself.

I soon afterwards passed the Moshanan Creek, in which an expert fisherman on a favourable day can kill any quantity of trout he pleases. Beside the bridge, is a small and solitary tavern, kept by an Englishman from Gloucestershire. With him resides an old man named Joseph Earl, a complete specimen of the real backwoodsman; just such a character as Leatherstocking, in Mr. Cooper's novel. He will take his rifle and his knapsack, and frequently absent himself for weeks at a time in search of game. If he kill a deer, he will carry off the skin, and hang up the venison in a secure place, and from his intimate acquaintance with the mountains, and every settler who lives in them, no long time elapses before he can command any assistance he may require. The principal tenants of the forest are the cougar or painter (panther), as it is very improperly termed; the bear, the wolf, the lynx (called the cat-a-mount), the wild cat, the marmot, the racoon, the opossum, and red and grey foxes. The deer, which in some

places is very abundant, is the *cervus virginianus*, a species unknown in Europe, of a size between the red and common fallow deer, with a small palmated horn. Beside this there are but two species of deer found in the eastern States, the moose deer, or great Siberian elk, and the American elk, four of which were exhibited in London some years ago under the coined name of wapiti, and which have bred very well in England. Other kinds of deer, and goats, and sheep, and an antelope from the Rocky Mountains, are exhibited in the Zoological museum. The reindeer is found in the colder latitudes of Lower Canada, where it exists in large herds. A species of stag of gigantic size, with enormous horns, which Humboldt considers as a distinct species, is very common in the forests and plains of New California. He thinks it probable that the horns which were displayed by Montezuma to the companions of Cortez, as objects of curiosity on account of their immense size, belonged to this animal. A species of the same genus as the European chevreuil, or roebuck, is also found in Canada and some of the States. It is larger, and longer eared than the European animal. Of the *cervus virginianus*, or common deer of America, a single hunter will sometimes kill two or three in a day; but will more often go without a shot, as they are very wild, and their sense of smelling exceedingly acute. A still day is unfavourable; a windy day is the best, as the sportsman can then come very near them on the windward side. The cougar is their greatest enemy, but is luckily not very common. A few years ago an American gentleman who had taken up his shooting-quarters at the tavern I have just mentioned, wounded a deer, and tracked it by the blood. On coming up with it, he observed a cougar on the animal; he fired, and had the satisfaction to see it drop dead. When he approached, he saw another, that had crouched behind the body of the deer. He disabled him, and killed him with the third shot. As he was returning, he killed another deer, and brought all the four skins with him to the tavern. The old Englishman shewed me the scalp of a deer that had been killed during the last season: a cougar was in full pursuit of him; and the deer took to the water close by the tavern. The cougar sprang on him in the water, but made off when he saw one of the old man's sons approaching with a rifle, from which the poor deer received his death-wound immediately afterwards. I found that there was a penalty of five dollars for killing a deer at this season of the year.

The winged game of these forests are—the wild turkey, which being pursued with avidity by the sportsman, is becoming more scarce every day:

it is larger than the tame turkey, and its plumage closely resembles that of the dark-coloured domesticated bird, but is rather more brilliant; the pheasant, which is a species of wood-grouse; the partridge, which should rather be termed a quail, but which is, in fact, as I have hereafter noticed, neither one nor the other; the woodcock, snipe, pigeons, and wild fowl, in great abundance.

The largest snakes found in these forests, are the rattle-snake, the copper-head, or moccasin-snake, so called from its yellow colour, resembling that of the moccasin, or Indian sandal; and the black-snake. The latter grows to the length of seven or eight feet, and even longer. It moves with great rapidity, is a species of the boa-constrictor, and its habits and manner of taking its prey are similar to those of that tremendous reptile. The bite is not poisonous. The copper-head is a very dangerous snake, as it gives no warning like the rattle-snake. Its name is its description, as far as it goes. Its length is about three feet. The rattle-snake is too well known to need much description: it invariably raises its tail and rattles before it strikes, so that, in general, it can be easily avoided. The Indians consider this as proof of its noble nature, and accordingly they never destroy it, believing that it has something divine in it. A large rattle-snake would measure four feet in length, perhaps, or a little more, but is very thick in proportion. When about to attack, it suddenly coils itself, with the tail raised, and rattling in the middle of the coil, and can strike from nearly its whole length. It is a very spirited animal; and from its moving but slowly out of the way, is destroyed with little difficulty. Much has been said of the extreme danger of its bite, and of the number of persons bitten; but like the accidents from canine madness in England, they are far more often heard of than met with. It is most probable that a person would die, unless immediately assisted,—or have at all events a very narrow escape, if bitten on any part of the body that happened to be naked; but if struck through his clothes, so great a proportion of poison is by them absorbed, or prevented from coming in contact with the blood, that the bite, if taken in time, is not dangerous.

It is a well known and singular fact, that the body of a person bitten, will sometimes change whilst under the influence of the poison, to the colour of the snake that bit him. The plant called the rattle-snake weed (*bidens frondosa*) is a remedy used by the Indians, and sometimes, I was credibly informed, with great effect. The leaves and root are boiled in milk and used

as a poultice; the milk is also taken internally. In Mr. Pratt's botanical garden at Philadelphia, I saw a specimen of another plant which is also considered efficacious (*polygela senaga*) called by the French "l'herbe a serpente a sonnettes." It grows in damp and shady parts of the woods, to a height of about two feet; has a small pointed leaf, and a single fusiform root, resembling a piece of stick-liquorice. I was, however, assured by a physician of eminence at Philadelphia, that the only remedy he had never known to fail, was the speedy application of a cupping glass to the wound, and a large tea spoonful of ammonia in a wine glass filled with water, administered every hour till the symptoms took a favourable turn. It is well known that hogs soon destroy every snake in the woods around a settlement. They eat them, and are seldom known to suffer from the bite, owing, it is said, to the quantity of fat in their system. Almost every wild animal is their enemy; small birds will often peck at them, although at the same time credence is certainly to be given to the stories of fascination or terror by which small animals, such as squirrels and birds, are sometimes rendered unable to escape from them. Deer will crush them to death, by jumping on them with all their four feet brought close together. I was frequently told that rattle-snakes were common here and there; but still I never saw one: the fact is, that they generally lie concealed. A person travelling in the woods, will sometimes come suddenly upon fifty or a hundred of them basking on the rocks. They all retire as the cold weather approaches, and lie torpid during the whole winter; so that a sportsman is in no danger from them. A French gentleman, who a year or two ago was shooting grouse very early in the season, on the mountains in New Jersey, was suddenly struck near his hip by a rattle-snake of the largest size; thanks to his loose fustian trowsers, the fangs did not touch him; the brute could not extricate itself, and hung upon him till stunned by repeated blows from his gun.

Philipsburg is rapidly increasing, under the advantages of English superintendence: it contains about eight hundred inhabitants in the town and environs. It is almost exclusively the property of one English gentleman, who is master of nearly 70,000 acres in that part of the country. While I

partook of his hospitality, I was agreeably surprised by the circle of English society, which I found collected under his roof. Several English have made Philipsburg their place of residence. Its advantages consist in a remarkably healthy situation on the western slope of the Alleghanies, where the descent is so gradual as to be hardly perceptible; an easy and constant communication with Philadelphia, and Pittsburgh on the Ohio; excellent trout-fishing, and shooting in the forest; a very cheap market (a sheep or deer can be bought for a dollar), and excellent medical advice. Uncleared land may be purchased at one, two, or three dollars an acre.

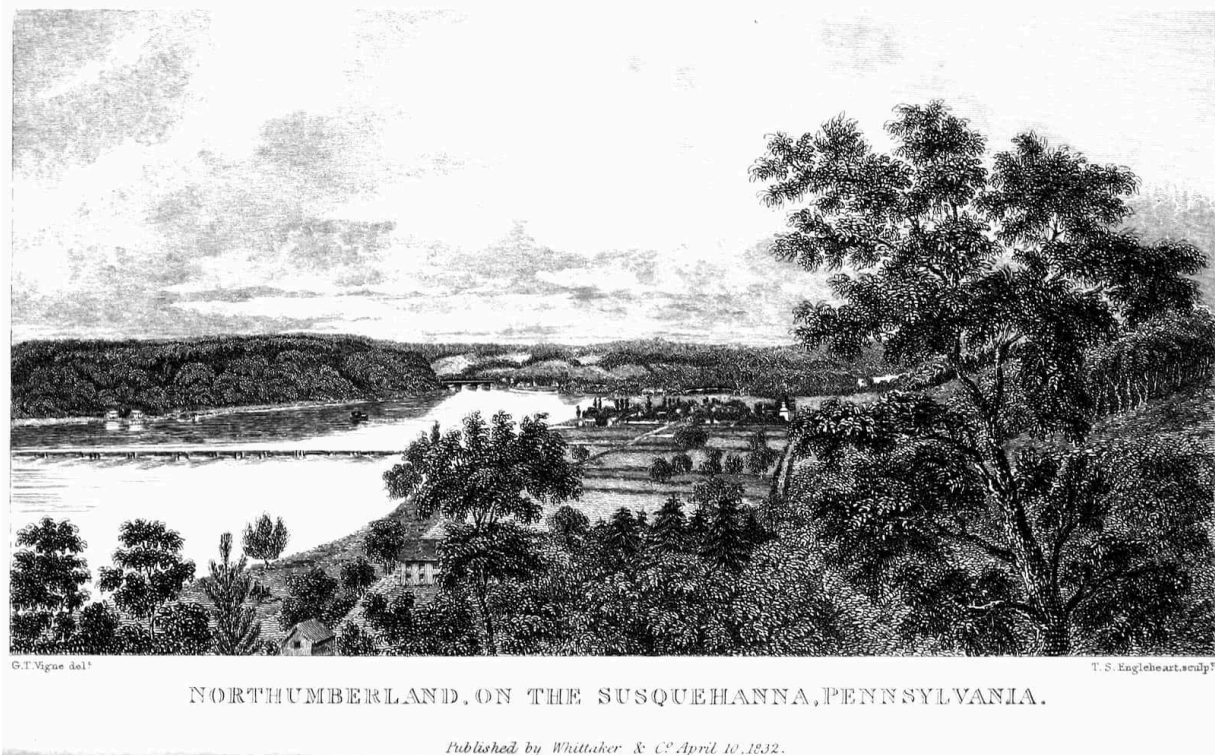
The large beaver dams in this neighbourhood afford the finest pasture imaginable. They run for several miles along the side of the Moshanan Creek. What is now called a beaver dam, is not merely the fence or dam which that industrious animal had thrown across the stream, but the whole meadow over which the water was spread in consequence of its being arrested in its course. The beaver was held sacred by the Indians, and their habitations were probably undisturbed for centuries. The stream, when checked in its career by the dam which those extraordinary animals had constructed, found its level, of course, in every nook to which it could gain access; and tree and shrub rotted away with so much moisture. As the beaver was destroyed, or driven out by the progress of civilization, the dams gave way, and the stream soon returned to its former channel, and the bottom of the pond or dam is converted into a fine meadow, exceedingly valuable for the purposes of the grazier. A person may travel through the forest for many miles, and will suddenly emerge upon a green open space, with scarcely a tree or shrub upon it, although at the same time it be surrounded by a leafy wall of the loftiest forest trees. An English gentleman had just commenced a farm on one of these dams, and I rode about six miles through the woods to visit him. The place had much the appearance of an English park, which deer and other wild animals would frequently cross, and sometimes within rifle-shot from his window. It was more than a mile in length, with the shape and appearance of a billiard table.

At Philipsburg, and in the neighbourhood, are several iron works. I visited a curious screw manufactory there: the machine for heading the screws was invented on the spot, and probably there is not such another to be found any where. It turned out about sixty screws in a minute, and

finished them off with a neatness that would excite the surprise even of a mechanist.

I have before mentioned that Philadelphia will shortly be connected with the Ohio river, by means of the Columbia rail-road, from which the great Pennsylvania canal will soon be finished to the foot of the Alleghany mountains, where it will be joined by another rail-road, which will pass the mountains, and communicate with Pittsburg. Another rail-road will, most probably, be constructed, so as to intersect the same canal a little above Huntingdon. It will come from the bituminous coal district, which lies about Philipsburg and Clearfield county, and is spread over a great extent of ground on the western slope of the Alleghany. Plenty of stone or anthracite coal is to be found in many parts of Pennsylvania, and in vast quantities; but the bituminous coal used in the transatlantic cities is supplied either from Liverpool, from Nova Scotia, or from Virginia. The particles of the Virginia coal, however, are too much divided, and it more resembles the coal used by a blacksmith, than the Newcastle coal. I have understood that bituminous coal has been lately discovered, although in very small quantities, in Pennsylvania, on the eastern side of the mountain. The anthracite coal throws out a very powerful heat, but is very troublesome and unmanageable, requiring a long time before it will kindle properly; burning without flame or smoke, and creating an unpleasant and rather unhealthy dryness in the atmosphere of a room. An experiment had been successfully tried in New York, by which the anthracite coal had been rendered subservient to the purposes of the steam-engine. It was contrived that a stream of hydrogen-gas, generated by part of the engine, should flow constantly over the burning coal, so that a powerful flame was thus fed under the boiler. But in all cases where a manageable fire is required, the bituminous coal is far preferable. By means of the Philipsburg rail-road, the whole country will be supplied with this valuable mineral, at a very moderate expense, from the inexhaustible stores on the western slope of the Alleghany. The necessity of making cheaper iron is becoming daily more imperative in the United States. For this end, to say nothing of the carriage of timber, the Philipsburg rail-road will be very advantageous, as it will bring down the coal to be converted into coke, to be used in the smelting furnaces; and it will pass through the midst of the Juniata iron district, where more than twenty forges and furnaces already exist in full activity; and whose increasing importance calls for a more adequate and expeditious

mode of conveyance than it at present commands. The whole country will be much benefited; and independently of the real and lasting advantages to be gained by the construction of the Philipsburg rail-road, an early attention to the plan, from the proper quarter, will be but justice to the exertions of a gentleman, who, with his brothers before him, has devoted time and capital to the enterprise, and has called into existence a highly respectable community, and the most thriving and useful settlement in the back woods of Pennsylvania.



G.T. Vigne del†

T. S. Engleheart, sculpt†

NORTHUMBERLAND, ON THE SUSQUEHANNA, PENNSYLVANIA.

Published by Whittaker & C^o. April 10, 1832.

I left Philipsburg, and returned to Belfont, whence I took the road to Northumberland. In about six hours I again came in sight of the Susquehanna, flowing through an extensive valley, with its lofty southern bank robed to the very summit by a covert so thickly interwoven as to be absolutely impassable. I proceeded down the side of the river till I arrived at the ferry at Dunnsburg. Here I met with a piece of singular incivility and impudence. The insolent young Charon allowed me to place my luggage in his leaky bark; but as I was proceeding to take my seat, he “calkilated,” with the most disagreeable twang (at least, I thought so) that I had yet heard, “that I must pay him a fip (five-penny bit) before I put my foot into his boat.” It was all in vain that I pointed to my portmanteau, intimating that it would be “assets” for the payment of my passage to the other side. Nothing would satisfy him but my fip beforehand; and I was obliged to pay it. It appeared that some stage-passengers had gone off without paying, and he did not wish to be cheated a second time. The guard who arrived with the mail, was so enraged at his conduct, that he actually took out one of the horses, crammed him through the river, and arrived safely on the other side with the letter-bags.

Within a mile or two of Dunnsburg, are some Indian tumuli; but I did not stop to see them. I travelled onward through a most delightful country, abounding in black-oak; the bark of which is sent down the river, and shipped off in great quantities for England, where it is used in dying. I enjoyed a very fine view from the hill over which the road passes near Moncey; but I afterwards saw the same prospect to much greater advantage, from Northumberland. This place contains about two thousand inhabitants, and is most delightfully situated on the neck of land that separates the northern and western branches of the Susquehanna. The celebrated Dr. Priestley spent the latter years of his life in this place. He died about twenty-five years ago. I was assured by an old and intimate friend of his, who was with him but a few minutes before he died, that there was great foundation for a prevalent belief, that for some months previously to his death, he changed his opinions in favour of the divinity of Christ.

Good land, in a state of cultivation, is worth twenty, thirty, forty, or even a hundred dollars the acre, in this part of the country. The average profits of land amount to twelve and a half per cent. Thirty bushels of wheat is a good crop. The wages of the married labourer are fifteen dollars a month (the

United States dollar is equal to 4s. 6d.). Single men, who board at the house of their employer, receive but ten. Wherever I made inquiry, I found the rate of labourers' wages to be much the same throughout the States.

I crossed the western branch of the Susquehanna by a new and handsome wooden bridge, built as usual on stone piers. Its length was 1316 feet, and it cost 70,000 dollars. I then immediately ascended the heights on the other side. From them I had a full view of both branches of this "shining river," an appellation which none deserves better than the Susquehanna. I preferred the scenery around Moncey to that in the direction of Wyoming. The sun was declining behind the precipice on which I stood, which was thrown more and more into shade, as the red rays glanced through the pines on its summit, and swept downward into the broad and beautiful valley beneath me. The windings of the river were visible to a great distance. Although considerably larger, it strongly reminded me of the Thames seen from Richmond-hill. Its tranquil lake-like stream meandered through the country, encircling several islands: at one time gliding in silence through the forest, or emerging to roll its waters over a rich and extensive meadow, it freshened every thing in its course; and when it had fully performed the task of ornament and usefulness allotted to it by nature, it seemed to lose itself through a gap in the Blue Mountains, from which in reality it issued.

Beautiful as it is, yet, were this England, I could not help thinking, how different would be the appearance of the country! I am gazing on a view, as splendid as any one of the same character I ever beheld in any land,—I see before me a noble river, winding its way through an exquisite landscape, of hill and dale, and wood and verdure, abounding in every resource that could make a country life agreeable; but it is in vain that my disappointed eye roves over the scene, and rests on the most magnificent situations for park and palace: where, thought I, are the "stately homes of England?"—where is the marble-fronted hall, and the village church beside it, with its spire pointing to the heavens? The powerless genius of embellishment wanders disconsolate along the beautiful banks of the Susquehanna, and bitterly complains that he is fettered by the spirit of democracy.

I am far from meaning to infer in the above passage, that there is any lack of churches in the United States. On the contrary, they are numerous. As an Englishman, I am here speaking merely with reference to situation, and the association of ideas excited in my mind.

The Americans, in general, are not fond of comparisons between England and their own country, except in cases where the balance is in their favour; but still, I have often observed that there is no subject of conversation more gladly discussed by an American gentleman, and more particularly by those who have country houses of their own, than the splendour of the seats of our nobility and gentry, and the perfection of society which is enjoyed at them. There is nothing in England so apt to elicit from them a remark of honest regret, as their knowledge of the very remote probability, I may almost add, the utter hopelessness, of their ever being able to boast of seats and villas at all equal to those on this side of the Atlantic, so long as the present form of government exists in full force. Who would build a really splendid mansion, which, after his death, will probably either become a ruin, or be sold, and converted into an hospital? or who would clear and beautify a park of any extent, to be divided and ploughed up by his needy successors? I have seen country houses in America, whose delightful situation, and gentlemanly appearance, (although it must be allowed, they often look their best at a distance), only serve to render the prospect of division the more melancholy. I have been kindly received at many of them: I have usually noticed a due attention to comfort and elegance, and invariably, to kindness and hospitality; but I have not been able to avoid a remark, that there did not appear to be much difference in the size of the houses, or the extent of the grounds, as if there existed a general and mournful acknowledgment, that a just medium was to be observed between the expense incurred with reference to present enjoyment, and the probability of an ultimate loss of capital, when the future was regarded. I could name a few, but very few, exceptions.

Whatever the Americans may think of their institutions in other respects, there are many sensible Americans—and I have met with them—who will acknowledge the inefficacy of these to counteract the disadvantages, not to say miseries, sometimes arising from the non-existence of the law of primogeniture. The object is, to exclude the preponderance of wealth, because it tends to generate an aristocracy of political power. The non-existence of the law of primogeniture is, I think, with great deference, but lamely defended by Chancellor Kent, in his admirable Commentaries on American Law, and which, by the way, are most richly deserving of a place in every library, if it be merely on account of the learned dissertations on the history of every republic of note that has ever existed. He quotes Adam

Smith in support of his opinions; the Marquess Garnier, his French translator; and the Baron de Stael Holstein,—and although he acknowledges the attendant evils, yet he says it would be an error to suppose that they have been already felt. But surely there are some which he does not contemplate in his work; but which must be acknowledged to have a miserable effect upon the state of society. A sale, not unattended with sacrifice, takes place at the decease of nearly every person who dies in possession of landed property. This is followed by a minute division of the proceeds amongst the next of kin. As to the law of dower, it is much the same as that of England generally; but where the sale has been made, the produce is considered as real estate so far, and the widow receives an annuity from one third in lieu of her dower. This does not effect the distribution of the remainder, which is divided as in England. It often happens, that the share of each person, if young, is just enough to purchase his destruction.

Very frequently, but in some States more than others, its most prominent application is detected by the effects of a vicious indulgence in ardent spirits, principally among the second and lower classes. Drunkenness still prevails to an alarming extent, notwithstanding the benign presence of the temperate societies. I have heard the most melancholy and appalling accounts of its ravages in private life; and in one place I was informed of its disgusting influence over judicial morality. The root of the evil is in the expectations which are formed: it is the certainty of actual possession of property at a future time, accompanied by ignorance as to its amount, that so often cherishes in the children the most dissolute habits of idleness, with all their attendant evils. Supposing both of them in the same easy circumstances as country gentlemen, and fathers of families, how different must of necessity be the sentiments of an American and an Englishman, when they survey their respective fire sides! Both see around them their wives and children, in the possession of affluence and comfort, and happy in the enjoyment of each other's society. But in the event of his death, how gloomy may be the picture drawn by the one, in opposition to that contemplated by the other! A divided estate and a dispersed family, present themselves to the mind of the American; or perhaps a small part of them living together, but unable to command any share of the luxuries, and not many of the comforts they enjoy during his lifetime, in consequence of a secession of property by marriage, or decrease of it from dissipation. The

Englishman feels a debt of gratitude to the constitution of his country: in the event of his death, his house, in the possession of his eldest son, will be a home for his widow and a place of meeting for his children. His younger sons have been brought up under the idea that they are to be the architects of their own fortunes, and such a doctrine has not rendered them unhappy, because it has enforced the virtue of contentment. The law of primogeniture perpetuates, through the eldest son, a species of parental affection and authority; and where there is a title to descend, there is a further inducement to the eldest son to emulate the virtues or the actions of an illustrious father; or, if that father has brought disgrace upon a distinguished name or sullied the escutcheon of a distinguished family (which, be it added, is sometimes the case), the son may be naturally desirous of wiping away the stain, and of giving the benefit of his example to society, by his imitation of the character of a nobler ancestor. There is yet a further deficiency of inducement to exertion existing in the American, and in every other democracy. In England, a young man in the enjoyment of a sufficient income, and who is consequently not obliged to labour at any profession with a view to its increase, yet with the possibility of obtaining a title, will exert his abilities to the utmost; but in America, the stimulus of titled distinction being unknown, it must often happen that the finest talents are doomed to remain unemployed.

I crossed the north branch of the Susquehanna, and passed on to the town of Sunbury, on the bank of the main river, and about two miles distant from Northumberland. Sunbury is a very pretty country town, with a delightful promenade along the side of the river. In all parts of the vicinity there are some beautiful prospects: near it, a very large dam has been thrown across the stream, where, by the junction of its two branches, it spreads out, and forms a basin three quarters of a mile across. I observed some fishermen hauling their nets, and went up to them. They had taken some cat-fish, and several salmon. The cat-fish has obtained its name from its appearance: its head, which is out of all proportion to its body, is large and round, with the addition of two worm-like appendages projecting beneath the eyes, like the whiskers of a cat. It is altogether a dark, ugly-looking fish; but is eatable, with a flavour something like that of an eel, but inferior. In the larger western rivers it sometimes attains a weight of eighty or one hundred pounds. The fish improperly called the salmon, in no respects resembles the real salmon of Great Britain. It has none of the peculiarities of the salmo

genus; and does not rise at a fly. In figure it is not remarkable; in colour it is more similar to the pike than to any fish I am acquainted with. The weight of those usually taken, is about a pound; but some of them are larger. A fly-fisher would have but moderate sport on the Susquehanna; but he might kill a great variety of fish, if he condescended to use a bait, and might occasionally take a large trout with a minnow. The river contains pike and eels, of immense size; trout, not numerous; rock-fish, cat-fish, suckers, common and silver perch—a beautiful fish; and a very small species of lamprey, that is only used as a bait. The shad is also found in great quantities in this and almost all the rivers of the Eastern States. It is excellent eating, and usually weighs about four pounds; but I thought the flavour of the Susquehanna salmon equal, if not superior, to any fish I tasted in the United States. I should almost presume that it was peculiar to that river, as I have frequently met with natives of other States who had never heard of it.

At Sunbury, I chanced to be told that three Yorkshiremen had just been taken up. I would bet three to one, said I to myself, that their crime is horse-stealing! and so it proved when I made inquiry.

I here turned my steps away from the Susquehanna, which for placid beauty surpassed in my opinion any other river in the States, and proceeded towards Philadelphia, by way of Pottsville and Reading. Scarcely more than a year ago there were but a few houses at the former place; but in consequence of the immediate vicinity of enormous beds of anthracite coal, and the improved means of conveyance to Philadelphia, its size and importance had increased in a most extraordinary manner.

The country around Philadelphia is very flat; so that I could not find a rising ground to take a sketch from, at what I considered the best distance. But, I think, in passing down the river, in my way to Baltimore, I perceived a small cliff on the left bank, that would have answered the purpose, being distant about two miles and a half. A view in a flat country requires great minuteness, if it be taken correctly, and would have occupied too much time; besides, before commencing a drawing of either of the larger cities in the Union, it really became a matter of consideration, that I had but one cake of “Newman’s light red” in my colour-box.

A fine steamer carried me down the Delaware. About thirty-five miles from Philadelphia, we passed Wilmington and Brandywine. We were then landed at the mouth of the Chesapeake and Delaware canal, and were towed onward, at a brisk trot, in one of the canal boats, and soon entered the Elk river, near the head waters of Chesapeake bay. The country was flat; and a great proportion of it was covered with forest. Here we went on board another steam-boat, that rattled us along at a tremendous pace down the Chesapeake, passing the mouth of the Susquehanna. The captain assured me that upon one occasion, during a camp-meeting, he had carried no less than fifteen hundred persons at a time; he landed them during the night, and about two hundred got away without paying their passage.

In an hour or two, the North Point, at the entrance of the Patapsco river, became visible. General Ross landed here, with the British force of 5000 men, on the 12th of September, 1814, and met his death in the skirmish that ensued shortly afterwards. I rode from Baltimore to the spot where he fell, marked by a small plain stone-monument, by the side of the road. The last four miles out of fourteen lay through a very pretty wood, affording a most grateful shade. When we were within two miles from the city, we passed Fort Mac Henry, which was bombarded upon the same occasion, almost from the extremity of the range of a shell. Some of them, where they fell, penetrated the ground to a depth of five or six feet.

Baltimore, when viewed from the Chesapeake, appears to be built over several low hills, or slopes, and surrounded by others that are considerably higher. Its situation is much finer than that of Philadelphia. It is not so fine as that of New York; but in some respects, is, I think, superior to Boston. When approached by water, the most conspicuous objects are—Washington's monument, the shot-towers, the Roman Catholic cathedral, and the Unitarian church, all scattered in different parts of the city. Washington's monument is a plain column of marble, raised on a square base, 175 feet in height, and surmounted by a colossal statue of Washington. It is seen from a great distance on every side, and commands the finest and most extensive prospect; but I am very much inclined to doubt the taste that placed any other than an allegorical object on the top of a lofty pillar. The size of the column, and its simplicity, are calculated to excite admiration; but in my humble judgment, it would have been much better to have had a really fine statue placed inside the base of the column, than to perch the

General upon a height that would make a living Admiral feel giddy. Lord Hill's monument, near Shrewsbury, and that to the memory of General Brock, at Queenstown, are, I think, objectionable, for the same reasons. The battle monument is much prettier, although it is somewhat florid in its ornaments: it is fifty-four feet in height. The column is a circular fascis, symbolical of the Union, twined round with fillets, bearing the names of those who fell on the 12th and 13th of September, 1814; and supporting an allegorical statue of a female, personifying the city of Baltimore, with a bald eagle, the United States' emblem, at her side. The Archbishop of Maryland is the metropolitan of the States. The Catholic cathedral is a handsome building, with a dome in imitation of the Pantheon. The inside, which is divided into pews, contains two very good pictures from the French school: a descent from the cross, by Paul Guerin, presented by Louis XVI.; and St. Louis burying his dead officers and soldiers before Tunis, by Steuben, presented by Charles X. The descent from the cross is much and deservedly admired. It has the merit of being free from that tedious detail that is usually to be observed in the works of French artists, who paint every thing as it is, and not as it appears. It occurred to me, that the body of Christ did not sufficiently rest on the ground, as intended. The latter picture displays more of the French taste. I did not like it so well, but many prefer it to the other. At Baltimore, is the University of Maryland, which ranks very high as a medical school. The average expenses of a student are one hundred and twenty dollars per annum. It has also professors in law and divinity. St. Mary's College and Baltimore College are also justly celebrated throughout the Union; the latter will accommodate one hundred and fifty students, who are instructed, by twelve professors, in the ancient and modern languages, mathematics, natural philosophy, &c. The city also contains a good museum, which I did, and many more public buildings, which I did not visit, as I could not learn that there was any thing in them particularly deserving of attention. The theatre was not open.

The waters of the Chesapeake and the Patapsco are the favourite resort of the canvas-back duck, which I had always been told was the greatest delicacy imaginable; and, "like nothing else, sir! I assure ye!" The sporting

commences early in November, and affords most excellent sport. An experienced shot will sometimes kill three dozen in a morning with a single gun; and occasionally they are shot on the wing with a single rifle. The canvas-back duck very much resembles the red-headed wigeon, or common dun-bird. Lucien Bonaparte, who has so well continued Wilson's work on American Ornithology, has successfully shown that it is quite a different bird. It is about half as large again, with a black and different formed bill and black legs. Those of the red-headed wigeon are of a dark lead colour. They breed on the borders of the great lakes, or about Hudson's Bay; but in the winter months, they are found in prodigious quantities on the Chesapeake, the Patapsco, and the Potamac. Its flavour is owing to the root of the *Vallisneria Americana*, or wild celery, on which it feeds, and for which it will dive to a depth of eight or ten feet. The red-headed wigeon, when in company with the canvas-back, will often wait till it has risen from the bottom, and then snatch from it the hard-earned morsel. The *bons vivants* of America, talk of the canvas-back with an interest that borders on affection, and is sometimes very amusing. "Sir," said an old fellow to me, "I wished to give a duck feast, and accordingly I bought nine couple of them, all fresh killed, and all of the right weight. I stuffed them into every corner of my gig; and would not suffer the cook to touch them, except in my presence. I dressed them all myself, in different ways, in my parlour, so as to have them all done according to figure, sir! Well, sir! all my company had arrived, except an old German; we could not wait, and sat down without him. When he came, he exclaimed, 'What! noshing but duckhs!' I started up in a rage, sir! a violent rage, sir! 'Noshing but duckhs!' I repeated after him: Why, you d——d old scoundrel, said I, your own Emperor of Austria never had such a dinner: he could not, sir, though he gave the best jewel in his crown for it." I tasted these birds several times before I quitted America, and they certainly are extremely good. The meat is dark, and should be sent to table underdone, or what in America is called "rare." I think the flavour might be imitated by a piece of common wild duck, and a piece of fine juicy venison, tasted at the same time. The word "rare" used in that sense, and which is given by Johnson, on the authority of Dryden, is no doubt one of many which have retained in America, a meaning in which they are not now used in England, but which was doubtless carried over the Atlantic by the settlers of a hundred years ago. I confess that I was for some

time in error. I heard every one around me giving orders that his meat should be “rare,” and I thought it a mispronunciation of the word raw.

The environs of Baltimore are exceedingly pretty: almost every eminence is crowned with a country house, surrounded by gardens and pleasure grounds richly wooded, and laid out to the best advantage, so as generally to afford a peep through the trees at some part of the Patapsco, or the Chesapeake. They are admirably adapted for a fête champêtre, or a strawberry party, as it is called at Baltimore. I had the honour of an invitation to the only one that was given during my stay in that city. The company assembled about six o’clock. Quadrilles and waltzes were kept up with great spirit, first on the lawn, and then in the house till about eleven. In the mean time strawberries and cream, ices, pine apples, and champagne, were served up in the greatest profusion. I had understood, and am quite ready to admit, that Baltimore deservedly enjoys a high reputation for female beauty. I am speaking of the American ladies in general, when I remark that it is no injustice to them to maintain, that where you will see twenty pretty girls, you will not see one really handsome woman. I have frequently observed the prettiest features,—such as more reminded me of England, than of any other country; but I think that most Europeans who have formed a correct taste from the “stone ideal” of Greece, would agree with me that ladies with pretensions to that higher degree of beauty, are not so often to be met with in America as in England. There is one particular in which they would do well to imitate my fair countrywomen. They have great charms for the breakfast table; but yet, elegant and lady-like as many of them undoubtedly are, how often have I been compelled to wish, that the breakfast table had not quite so many charms for them. They *must* know that to eat is unfeminine; and that ladies should in the presence of gentlemen, appear *very* hungry, is a decided proof of a deficiency in national manners,—just as much, or even more so, than that men, be they who or what they may, should sit with their hats on in the dress circle at New York. The influence of a court would extend to, and would remedy all this. I should here again remark, that the first society is seldom seen at the theatre, and would not be guilty of such behaviour.

It is a matter of great surprise to a stranger, that there is not one single promenade at Baltimore. There are some very eligible situations immediately adjoining the city, and which to all appearance are so easily

convertible into a public walk, that it is difficult to understand why the ladies do not insist upon its commencement. I would most humbly advise them to do so.

I was honoured with an invitation to “the Manor,” the country residence of Mr. Carroll, of Carrollton. The house was built long before the revolution, and is a curious specimen of Anglo-American architecture, somewhat resembling one of those large old parsonage houses which are to be seen in some parts of England. It stands in the midst of an extensive domain, in a high state of cultivation, and extremely well and neatly kept, considering that it is worked by slaves. I could have fancied myself in England, but for the loose zigzag fences of split logs, which offer to the eye but a poor apology for the English hedge row. Hedges of any kind would not, generally speaking, thrive well in the United States. It would be necessary, I was told, that they should be banked up, in order to keep them from being washed away by the heavy rains; and it is probable that during the extreme heat of the summer months, they could not obtain moisture sufficient to preserve them from being dried up entirely. They are, however, often to be seen close to a gentleman’s house, where they can be constantly attended to. I should conceive that the aloe hedges of Spain and Portugal, might succeed in the United States. It is neither a fault, nor a misfortune, that there is no water scenery at “the Manor.” The rivers and lakes of America are usually on a vast and magnificent scale, fitted either to bound or to deluge a continent; small streams are also common; but a lake for instance of a mile or two in length, is seldom to be seen, excepting in New England, where they are plentiful. Before I arrived there, I do not think that I had seen more than half a dozen ponds, and those all in Kentucky. Instead of being thought an advantage, a piece of water is avoided; no American, from choice, would build on its banks, as the exhalations in the hot weather render such a situation very unhealthy, excepting in the more northerly states.

At the manor I partook of that hospitality which is so kindly and universally extended to every foreigner who visits Baltimore with a proper letter of introduction. Mr. Carroll himself, is the most extraordinary individual in America. This venerable old gentleman is in his ninety-fifth year, is exceedingly cheerful, enjoys most excellent health, and is in good possession of his faculties. He is the only survivor of the patriots who

signed the Declaration of Independence on the 4th of July, 1776. He has always adhered to the federal principles, and his valuable estate is one of the very few that have descended in a direct line from the first possessor. Mr. Carroll is the grandfather of the Ladies Wellesley and Caermarthen.

No one who visits Baltimore should omit seeing the vessels known by the name of clippers. They are uncommonly neat single-decked schooners usually, but sometimes are rigged like a brig. Their burden is commonly about 200 tons. They are cut remarkably sharp at the bows, with a great breadth of beam. When lying in the water, the head is considerably elevated above the stern, so that, although the masts are nearly at right angles with the hull, they appear to rake much more than they really do. They will sail on a wind at the rate of seven knots an hour, when other fast sailing vessels can make only five and a half, or six; but few of them are good sailers before the wind. They usually make a voyage to the Havannah, where they are sold for slave ships, or to South America, where they are bought by smugglers or pirates, for whose occupations they are admirably adapted. They are built nowhere so well as at Baltimore.

Two rail-roads had been commenced at Baltimore: one called the Baltimore and Ohio rail-road, because it was intended to join that river. The exact line of country through which it would pass, was as yet a secret with a select few, who would thus be able to secure from the owners a refusal of the land through which it passed without being obliged to pay an increased price. The other is called the Susquehanna rail-road, and was intended to join that river at York-haven, about sixty miles below Harrisburg. Deputations have been sent from Baltimore to Philadelphia, to obtain the necessary permission to carry it into the state of Pennsylvania; but their applications have been, I was informed, twice refused. The rail-road, however, is still continued, from a well-grounded persuasion that the inhabitants of the western parts of Pennsylvania, convinced of the advantages that will accrue to them by its affording them another means of carriage for their bituminous coal, iron, and timber, will ultimately succeed in obtaining a majority in Congress in favour of its completion. But does not a jealousy of this kind arise, after a contemplation, however distant, of the political horizon? Has it not a prospective reference to the interest of the State separately, when the federal government shall be no more?

By the constitution of Maryland the governor does not possess the right of a veto over the Acts of the general assembly.

More flour is annually inspected at Baltimore, than at any other port in the United States excepting New York. The amount for the year 1830, was 597,804 barrels; but by the returns made since the first of January, 1831, it is supposed that the quantity in this year will exceed 600,000 barrels. The wheat that is shipped, is sent almost exclusively to England; but it bears a very small proportion to the flour, although it sells better in the English market—about 70,000 bushels of wheat were shipped this year for England. The quality in general is good, excepting that a portion of it is sometimes tainted with garlick; a nuisance that is almost unavoidable, because the plant grows spontaneously in the wheat districts. It is said to have been first introduced by the Hessians, during the revolutionary war, and it has since increased so much, that it cannot be got rid of. The wheat exported from Baltimore is grown in the State of Maryland, and in many parts of Virginia and Pennsylvania. Money had been plentiful for the last two years, and investments that would produce five per cent. were not easily to be met with. A market overstocked with imports from Europe and India, was the assignable cause: trade was comparatively less brisk, and many capitalists withdrew their funds from active business, for the purpose of investment in the stock of bank insurance and rail-road companies. A great quantity of money was likewise lying in the market in consequence of the national debt being in a course of reduction by the payment of government loans. However, when I was there, money was more scarce, and worth more than six per cent.; the exchange on England had risen as high as eleven per cent. per annum, and a large quantity of specie had been exported to that country.

At Baltimore, I first saw the fire-fly. They begin to appear about sunset, after which they are sparkling in all directions. In some places ladies will wear them in their hair, and the effect is said to be very brilliant. Mischievous boys will sometimes catch a bull-frog, and fasten them all over him. They show to great advantage, while the poor frog, who cannot understand the “new lights” that are breaking upon him, affords amusement to his tormentors by hopping about in a state of desperation.

About thirty miles from Baltimore, on the western shore as it is termed, stands Annapolis the capital of Maryland. It is situated at the bottom of a fine bay, and contains several curious old houses, built long before the

revolution. The most conspicuous object is the capitol, which is surmounted by a fine steeple. The general assembly of Maryland, hold their sittings there, and it was there that General Washington resigned to the federal congress the command he had so nobly used. It sat there for some time after the independence of the United States was established.

At Baltimore, I visited the studies of two very promising young artists: Mr. Hubbard, an Englishman, is certainly the better painter; but has the advantage of four or five years of experience over Mr. Miller, who is an American, quite a boy; and whom, I think, at least an equal genius. He has had little or no instruction. If sent to Europe, as he certainly ought to be, I will venture to predict, that at some future period he will be an ornament to his native city; and which he certainly never will, or can be, if he does not leave it. Will it be credited, that in America, with all her pretensions to good sense and general encouragement of emulation and enterprise, the voice of public opinion is a bar to the advantage of drawing from a living model? Without it, historical painting cannot thrive, and sculpture must be out of the question.

I left Baltimore with regret: I had been kindly and hospitably treated there,—and in a few hours the mail carried me to Washington. This city of distances—this capital that is to be—is laid out upon an open piece of undulating down, on the north side of the Potomac. The capitol of the United States is built upon the most lofty part of it, which is ascended by a fine flight of steps, and altogether has a very imposing appearance, being visible at a great distance from almost every side. It is of free-stone, which is found on the river about thirty miles below the city. In front is a magnificent portico of Corinthian columns, and behind it there is another; in the same style, (though larger), as that at Wanstead House in Essex, or Wentworth Castle in Yorkshire, which is a copy of Wanstead. On the top are three domes; that in the centre would look a great deal better if it were deeply fluted, like the dome of St. Paul's; at present it would be much better out of the way, as it gives a general appearance of heaviness, to what would otherwise be deservedly thought a very fine building. From the balustrade is obtained a delightful view of the river, and the surrounding country. The centre of the interior of the capitol, is occupied by a large open space under the dome, containing four pictures, that look very well at a little distance: the subjects are the Signing of the Declaration of Independence, the

Surrender of General Burgoyne, the Surrender of Lord Cornwallis; and General Washington resigning his command at Annapolis. They are painted by Col. Trumbull. The remainder of the capitol is occupied by the apartments and offices connected with the senate, the house of representatives, and the supreme court of the United States. The pillars which support the roof of the chamber of representatives, are of breccia, or pudding-stone; perhaps the most singular formation of the kind that is to be found anywhere, not excepting that at Monserrat in Spain, which is entirely composed of breccia. Fragments of granite, quartz, limestone, and other rocks, have been pressed together in the most extraordinary manner, by some stupendous power, and from a little distance the composition might be mistaken for the *verd antique*. It is found on the Potomac, about thirty miles above Washington. The president's house is a handsome building, with an Ionic portico; and the only one in the States that resembles the modern residence of a British nobleman. It is exactly at the distance of one mile and a half in a straight line from the capitol, and the houses are continued beyond it for nearly another. Numerous large streets radiate from the capitol and the president's house, as centres—a method of laying out a city far handsomer than that which has been adopted at Philadelphia, where the streets cross each other at right angles. Who that has seen the “Perspective” at Petersburg, can ever forget it? where the principal streets are all pointed towards the beautifully gilt steeple of the Admiralty, that is seen glittering at the end of each of them. It must be allowed that this arrangement has its disadvantages in the shape of the houses, and apartments, one end of which, if they are regularly divided, must be larger than the other.

In the dock-yard at Washington, I saw a sixty-gun frigate in a state of forwardness, and a small schooner constructed on a plan that had never been applied to a vessel of war, being of the same shape fore and aft, and having no internal timbers. The blocks made there, are not all of one piece, as they are at our dock-yard at Portsmouth. A double block for instance, is composed of seven pieces of wood, exclusively of the sheave. They are, no doubt, much stronger when made in this manner; but a man can make but one in half an hour.

The college at George Town, adjoining the city, is a Catholic establishment; its members are Jesuits, and who, as usual, are increasing their influence, by purchasing lands, &c. Attached to the college, is the

nunnery of the Sisters of Visitation, containing about fifty nuns. They tell there of a Hohenlohe miracle.

Washington, like most of the American cities, can boast of several beautiful rides and walks in its vicinity. Arlington, the seat of George Washington P. Castis, Esq., occupies a most conspicuous and commanding situation, on the south bank of the Potomac. It is visible for many miles, and in the distance has the appearance of a superior English country residence, beyond any place I had seen in the States: but as I came close to it, as usual, I was wofully disappointed. It contains a valuable portrait of Washington, when a Major in the British service, and wearing of course the blue-and-buff uniform.

Not far from the race ground, and about three miles from George Town, is the residence of a gentleman who has paid greater and more indefatigable attention to the culture of the vine than any other person in America. The vineyards around his house produce several different kinds of grapes; from which, considering how few years have elapsed since the attempt was first made, he may be said to have been very successful in producing some very good and palatable wines. Amongst others, the best is dignified by the very aristocratic name of "Tokay." It is made from the "Catawba" grape, which he himself first found in a cottager's garden, not far from a tavern bearing the sign of the Catawba Indians, distant about twenty miles from Washington. From this circumstance he called it the Catawba grape. The Catawba is a river of South Carolina, but no grape of the kind is found near it. The cottagers could give him no satisfactory account of it, and he never could find out whether it was indigenous, or, which is most likely the fact, imported. It is rather a large grape, thick-skinned, but at the same time very transparent, with a fine purple blush, and far more fit for making wine than to form part of a dessert. As yet it appears to thrive better than any kind of grape that has been tried in the United States; so much so, that at Pittsburgh, and Lancaster, and other places where there are vineyards, they have cleared away a large proportion of the European plants, in favour of the Catawba vine. He informed me that he had sent cuttings of it to every State in the Union excepting Florida, Arkansas, and Kentucky. A long time, however, must elapse before the Americans can compete with the wines of Europe: as yet, comparatively speaking, little can be known there, either with reference to the best fruit, or to the soil and temperature necessary to

bring it to perfection. Upwards of seventy kinds of the wild vine are found in the American forests, but not more than half of them bear fruit. At Boston I tasted a grape called the Isabella grape, whose flavour was still harsh, but was a great and decided improvement in every respect, upon the sourness of the fox-grape of the woods, from which, I was informed, it had been originally produced. I am, of course, speaking of the Catawba and other grapes, only in their wine-making capacity; the grapes raised in the United States for the table, are exceedingly good and very plentiful.

As a matter of course, I visited Mount Vernon. A steam-boat conveyed me to Alexandria in an hour. Alexandria was taken by the British squadron on the 29th of August, 1814, and the stores of flour, tobacco, and cotton, were carried off by them. It contains a population of 9000 persons, and carries on a trade in flour, tobacco, fish, and lumber, to the southern States and the West Indies, although Baltimore has run away with the greater part of its commerce. A ride of nine miles on a well-shaded road, conducted me to Mount Vernon, now in possession of John Augustine Washington, Esq., nephew to the General, and to the late Judge, whose worth and learning are recorded by an inscription in the court-house of Philadelphia. Of the house itself there is little to be said. I saw there a piece of an old mug, which bears upon it a small head of the General, said to be the best likeness of him that is known anywhere. From the lawn, there is a fine view of the Potomac with Fort Washington nearly opposite, which was abandoned at the approach of the British squadron in 1814. In passing Mount Vernon, the ships fired a salute it well deserved. I must confess that I was greatly disappointed at the sight of the tomb that contains the ashes of Washington. I did not expect grandeur, but I thought to have seen something more respectable than either the old, or the new tomb, to which the coffin was removed two years ago. But for the inscription, I should have taken them for a couple of ice-houses. An avoidance of every thing like pretension is desirable only so long as it is attended with neatness;—but there is not even what can be fairly called a path to either of them. Instead of feeling as I wished, whilst in contemplation of the last long-home of this really great, because good man, my mind was only occupied by intrusive reflections on the insignificant and pauper-like appearance of the whole scene before me. The tears of La Fayette, when visiting the tomb in 1825, might have partly flowed from other sources than the mere consciousness that he was standing in the presence of the mortal remains of his old friend and companion in

arms. There has been some talk of removing the coffin to the centre of the hall in the capitol, and of a monument to be raised over it, but I have understood that it is not seriously contemplated. If it were placed there, it might one day be the means of saving the Union. How forcible, how effective, in a moment of danger, might be an eloquent appeal to its presence, made by the Judges of the supreme court, or the orators of the American congress!

I was never fortunate enough to hear a mocking bird in its wild state; I had frequently heard them in cages, but nowhere in such perfection as at Washington. This bird, one of the noblest in nature, is an inhabitant of the southern states only, and is thus described by Wilson, the celebrated Ornithologist. "The plumage of the mocking bird would scarcely entitle him to notice, but his figure is well proportioned, and even handsome. The ease, elegance, and rapidity of his movements—the animation of his eye, and the intelligence he displays in listening and laying up lessons from almost every species of the feathered race within his hearing, are really surprising, and mark the superiority of his genius. He has a voice capable of almost every modulation, from the clear mellow notes of the wood-thrush, to the savage scream of the bald-eagle. In measure and accent, he faithfully follows his originals; in force and sweetness of expression, he greatly improves upon them: his admirable song rises paramount over every competitor. His own native notes are bold and full, and varied beyond all limits. In the height of his song, his ardour and animation appear unbounded—he sweeps round with enthusiastic ecstasy—he mounts or descends as his song swells or dies away; and as my friend Mr. Bartram, (an American naturalist), has beautifully expressed it: "he bounds aloft with the rapidity of an arrow, as if to recover or recall his very soul, expired in the last elevated strain. While thus exerting himself, a by-stander destitute of sight would suppose, that the whole feathered tribe had assembled together, each striving to produce his utmost effort, so perfect are his imitations. He many times deceives the sportsman, and sends him in search of birds that are not within a mile of him, but whose notes he exactly imitates. Even birds themselves are imposed upon by his admirable music, and are decoyed by the fancied calls of their mates, or are driven with precipitation into the depths of the forest, at the screams of what they suppose to be the sparrow-hawk." He is of a size between the thrush and the nightingale, but shaped like the latter bird. His plumage in general is of a cinerous brown colour, with a broad bar of

white on the wing, which he is very fond of displaying. I am afraid that I never heard them in perfection; but to judge from what I did hear, I should suppose that although infinitely more varied, his natural notes were neither so full nor so rich as those of the nightingale. But there are many who think differently.”

One morning I was much amused by the debut of a new volunteer corps, calling themselves the Highlanders,—Washington being one of the flattest places in the States. The dress would have looked well enough had it been uniform, but I was told there was not plaid enough of the same pattern to be obtained in the city. The bonnet had a very theatrical appearance, and would not have been half so bad, had not the eye been attracted by the waistcoat and the broad lacings of the coat, all of which were of a very dark sky-blue. I have a great respect for the tartan; and I thought it might have looked decent, even when converted, as it was, into small-clothes, had they not been made extremely tight. Still, however, the costume of the nether man might have passed unnoticed, had not the enormous bows at the knees been composed of tri-coloured ribbon, and the general effect much heightened by the long nankeen gaiters, which covered the leg from the knee to the shoe.

In the capitol, as all the world knows, sit the senate, the house of representatives, and the supreme court of the United States. And here I may be permitted to remark, that when writing generally on such a subject as the United States, every candid person will make allowances for the impossibility of avoiding a repetition of things already well known and well described. Under the apprehension that I shall frequently be in error on this head, I think the safest mode is to apologise at once, and beforehand. None, however, is necessary for not entering at large upon a subject so tedious and so endless, as that of the courts of the different states in their separate capacity as to the federal judiciary. I may mention, that the United States are divided into seven judicial circuits, and thirty-two judicial districts. Each state is one district, with the exceptions of New York, Pennsylvania, Virginia, Tennessee, Louisiana, and Alabama; which are each of them divided into two districts. There are three courts belonging to the general or federal government: the district court, the circuit court, and the supreme court. The district court possesses a civil and criminal admiralty and maritime jurisdiction, and also takes cognizance of all cases affecting the revenue, and all crimes and offences committed within the district, which

are punishable by moderate corporal punishment, or fine and imprisonment. It is held by a district judge (there being one in each district), sitting alone, four times a year: his salary varies from 1000 to 3000 dollars a year. An appeal lies from his decision in cases where, exclusive of costs, the matter in dispute exceeds the sum or value of fifty dollars, to the "circuit court," possessing an original jurisdiction, civil and criminal. The civil jurisdiction extends to all controversies between citizens of different states, and between a citizen and an alien. All offences against the penal laws of the United States, can be tried in this court. It is also a court of equity. The circuit court is held before the district judge, sitting twice a year with the judge of the supreme court. An appeal lies from its decisions to the supreme court of the United States, where the matter in dispute exceeds 2000 dollars. In criminal cases, a point may be reserved for the opinion of the judges of the supreme court, which is sent down to the circuit court to be proceeded upon afterwards. In six of the states, Alabama, Mississippi, Louisiana, Indiana, Illinois, and Missouri, there is no circuit court, because the judges of the supreme court could not find time to sit there twice a year; but the district courts possess the powers and jurisdiction of a circuit court.

The supreme court of the United States, is a very high and honourable tribunal, composed of a chief justice, with a salary of 5000 dollars (1125*l.*), and six associate justices, with a salary of 4500 dollars each, who hold a sitting once a year, at Washington, commencing on the second Monday in January. The court sits five hours every day for two months, deciding in that time usually about eighty causes, which are reported as those of the law courts in England used, and ought still to be, by an officer of the court. Its original jurisdiction is confined to all such cases, affecting ambassadors, consuls, and vice-consuls, as a court of law can exercise consistently with the law of nations; and it has original, but not exclusive jurisdiction of all suits brought by ambassadors, and other public ministers, in which a consul or vice-consul is a party. But its dignity rests chiefly on its appellate jurisdiction, which extends to all cases and appeals, and writs of error from the circuit courts: likewise in all cases where the constitution and laws of the federal government, or the construction of any treaty entered into by the federal government, or its validity, or any right or interest under a treaty, has been a subject of controversy in the state tribunals. Its decisions and opinions on the construction of the constitution, are the safeguard of the Union. But its appellate jurisdiction is defined, and extends to no cases but

where the power is affirmatively given. In order to enable it to issue a mandamus, proof is required that it is an exercise, or necessary to an exercise, of its appellate jurisdiction. The supreme court has jurisdiction in all controversies where the United States shall be a party in controversies between two or more states; between a state and the citizens of another state; between citizens of different states; between citizens of the same state claiming lands under grants of different states; and between a state, or the citizens thereof, and foreign states, citizens, or subjects. A strict and admirable attention to justice, is observable in these arrangements. Every description of case which might be partially decided by the courts of the litigant states, is brought to the bar of the great national tribunal to be disposed of.

During the last sittings of the supreme court, a case of great constitutional interest was heard before it. It was entitled “The Cherokee Nation, *versus* the State of Georgia.” The Cherokee nation having been repeatedly harassed by the incursions and other unneighbourly proceedings of the inhabitants of Georgia, applied to the supreme court for an injunction to restrain the state, its governor, and other officers, from executing and enforcing the laws of Georgia within the Cherokee territory. The counsel for the Cherokees argued, that not being a state of the Union, the Cherokee nation was to be considered as a foreign state, and was rendered capable of suing in the supreme court by virtue of the clause I have mentioned above, in which the judicial power of the court is extended to controversies between a state and the citizens thereof, and foreign states’ citizens or subjects: but Chief Justice Marshall decided, that the relation of the Cherokees to the United States resembled that of guardian and ward; that they could not be considered either as a foreign state, or as a state of the Union; and that therefore they were rendered incapable of suing in that court. His judgment was strengthened by the wording of the articles of the constitution, in which Congress is empowered to regulate commerce with foreign nations, and the several states and the “Indian tribes,” who being in this manner specifically mentioned, could not have been considered as a foreign state or nation by the original framers of the constitution. Imagine the astonishment of the poor Cherokees upon being told, that the highest tribunal at the city of their Great Father could afford them no redress. The affair will, of course, come before congress. Chief Justice Marshall decided according to the letter of the constitution; but the opinion of Chancellor Kent, of New York, is surely

deserving of the greatest attention, as containing an exposition apparently more agreeable to justice. He considers the Indian tribes “not only as states, but as foreign states, because they do not constitute any ingredient or essential part of our own body politic.” He considers the clause just referred to, may have contained the additional grant of power to regulate commerce with the “Indian tribes” out of abundant caution, and to prevent any possible doubt of the application to them of the power to regulate commerce with “foreign nations.” The last words, he apprehends, would have reached the Indians; but the constitution, in several other instances, has gone into a like specification of powers which were, by necessary implication, included in the more general grant. Thus, for instance, power is given to congress “to declare war,” and it is immediately subjoined “to grant letters of marque and reprisal.” They have power to “coin money,” and “to regulate the value thereof:” they have power “to raise armies,” and “to provide and maintain a navy:” and it is immediately subjoined “to make rules for the government” (and not government only, but it is added) “and regulation of the army and land force.”

All the judges in the American courts enjoy an immunity from wigs, and the judges of the supreme court alone are clothed in “silk attire.” Their robes are black, and fashioned according to the taste of the wearer. I examined four or five of them which were hanging up in the court, and found that although perfectly judicial, they displayed no small attention to taste in their cut and general appearance. A proper degree of dignity is required and observed in the supreme court; business is there conducted as it ought to be in every court of justice; but some of the state courts are remarkably deficient in this respect: even in the court-house at Philadelphia, during the sitting of the circuit court, I have seen a gentleman, a counsellor of eminence, coolly seat himself on the table whilst a judgment was being given, and in that attitude I have heard him address some interlocutory observations to the court, and press them upon its attention with great earnestness and ability. I cannot understand why more dignity, both judicial and forensic, should not be observed in the courts of the United States. I have often been in the company of American lawyers, who, as individuals, were men of gentlemanly manners, and excellent general information, which they have ever evinced a readiness to impart; but I do not remember one who ever mentioned the subject at all, without admitting that a proper

want of the respect due to the time and the place is frequently but too visible in the American courts; and yet there is no improvement.

Silence, being indispensable, is well preserved; but counsel and attorneys may be occasionally seen with their legs dangling over the back of a chair, or possibly resting on the table. A corresponding carelessness of manner is of course exhibited by the spectators. I have even observed persons with their hats on in court, and upon inquiry have been told they were Quakers; but once or twice I remember having taken the liberty of doubting the information. I hope I shall not be supposed to mean, that no greater decorum is observed in the principal courts of the larger cities than in those held at places of minor importance; I am speaking of them generally as I found them when in travelling. I happened to arrive at some place where a court was sitting, and “just dropped in” for half an hour *en passant*; but still there is always a something even in the best of them which, to an English eye, appears undignified and indecorous; although there can be no doubt that their appearance is not mended by the total absence of wigs and gowns from all of them.

The spirit of equality renders it allowable, and the impossibility in distant towns of making the profession answer by any other arrangement, renders it necessary, that a barrister and solicitor should frequently commence business as partners, and play into each other’s hands. A judge will frequently travel from town to town unattended, in his gig, or on horseback, with his saddle-bags before him, or in the stage-coach, and dine at the village table d’hôte with shopkeepers, pseudo majors, and advertising attorneys. Human nature will out. In the absence of other titles, it is the pleasure of the Americans that they should be dignified by the rank of General, Colonel, or Aide-de-camp; but more especially I found by that of Major. An English gentleman assured me that, being on board a steamer on the Ohio river, he was first introduced by a friend as plain Mr., then as Captain; soon after he was addressed as Major, and before the end of the day he was formally introduced as a General. There is usually a Major, or an Aide, as they call themselves, in every stage-coach company. The captain of a steam-boat, who was presiding at the dinner table, happened to ask rather loudly, “General, a little fish!” and was immediately answered in the affirmative by twenty-five out of the thirty gentlemen who were present.

One would have imagined, that in the United States, where an equal partition of the rights of mankind is the boasted foundation of the government, Justice would have been treated with peculiar courtesy; but she is not properly honoured there. Justice is not exclusively a republican in principle, whatever the Americans may think. She must remain unaltered, whatever may be the form of government, as the value of the diamond is the same whether its possessor be a prince or a peasant. During my occasional visits to the courts of justice in the United States, I could not help thinking how fortunate it was that Justice was blind, and could not therefore be shocked by the want of decorum I observed there. What was my surprise on entering the supreme court in the capitol at Washington, to perceive her wooden figure with the eyes unfilleted, and grasping the scales like a groceress! With great deference, I would suggest that the whole of this unworthy group should be removed. The day may arrive, as I have said before, when the supreme court may be the means of saving the Union.

Any suggestions recommendatory of an amendment or additional clause in the constitution, emanate from the judges of this exalted tribunal. When it is thought necessary that the constitution of any particular state should be altered or amended, the legislature authorizes the people to express their opinions as to whether they are or are not in favour of calling a general convention. This is usually arranged at the time of a general election. If there be a majority in favour of the convention, the legislature then calls upon the people to elect persons to serve as members or delegates, and it fixes the time of meeting. If any amendments are made by the convention, they are submitted to the people for their approval; and if a majority decide upon their adoption, they forthwith become part of the constitution.

When it is considered that the supreme court has a federal jurisdiction extending over a union of twenty-four states, many of them as large or larger than England, whose humble and individual importance are increasing, and which are divided and subdivided by party, and by conflicting and annually arising interests, and which are becoming more and more democratic in every succeeding year, and consequently more and more opposed to the spirit in which the constitution was originally framed, some idea may be formed of the importance that is attached to the decisions of this court, whose authorities, from first to last, are intended as a safeguard to the Union. The independence of this court, and, in fact, of all

the federal judiciary, may be termed the sheet anchor of the United States. Its power constitutes their chief hope; the abuse of it is the only medium of tyranny, and is therefore the principal source of apprehension. The judges of all the federal courts hold their offices during good behaviour, and are removable only by impeachment. It would reasonably be supposed that the individual states would follow the example of the general government in the appointment of their judges; but this is not the case. In seven of the states they are elected for a term of years only; in Rhode Island they are elected annually; in five of the states they are obliged to go out of office at sixty, sixty-five, or seventy years of age. This law in the enlightened state of New York has deprived it of the valuable services of Chancellor Kent, the author of the admirable Commentaries on the laws of America. There are many democrats who actually wish that the judges of the supreme court should be elected for a term of years only. This custom is notoriously productive of sufficient hardships in some of the more remote states, where, on account of the smallness of the salary, amounting to not more than two or three hundred pounds, the bench is sometimes filled by young and inexperienced men, who are the children of party, and whose decisions must be occasionally affected by the hope of re-election.

Entailed estates are but little known in the United States: in South Carolina, Georgia, and Louisiana, not at all. In many of the states they are nothing in effect but an estate in fee; the limitation in tail being of no value, except it be in special tail. But in all cases estates tail may be barred by a simple deed of bargain and sale, and which is, in fact, the almost universal assurance; lease and release being but little known. In other respects the doctrine of the statutes of uses is in full operation, excepting in the state of New York, where it has been discontinued since the new code passed in 1829.

The proceedings of the courts of equity are for the most part similar to those practised in England. Many of the states have chancellors, whose offices are held like those of the other judges. The state of New York had just been obliged to appoint a vice-chancellor, on account of the increase of business. The duties of the chancellor, as far as they go, are the same as those of the lord chancellor of England; but in many of the states the jurisdiction in bankruptcy or insolvency is separate. The terms bankruptcy and insolvency are used indiscriminately, although the distinction is of

course generally known and understood among lawyers. By the articles of the constitution, the general government is enabled to pass uniform laws on the subject of bankruptcy. No general bankrupt law has, however, been passed, although such a measure has been often contemplated. In the United States a proportion of the people, large beyond that of any other country, is engaged more or less in traffic of some kind or other in the course of the year, and the difficulty of coming to any equitable decision as to who may or may not be considered a bankrupt, has been the reason why no general law on the subject has been passed by the federal congress. The states likewise have the power of passing bankrupt laws; but they would only be productive of confusion, as they would not be allowed to have the effect of rescinding a contract between citizens of different states; the supreme court having decided that a discharge under the bankrupt or insolvent laws of one state, could not affect contracts made or to be executed in another. As a matter of necessity, the states have insolvent laws of their own, which are generally recognized and respected in all of them as far as they conveniently can be. In some cases the person only, not the debt, is released by them; in others, the debt is discharged, but future acquisitions by gift, devise, or descent, are liable, though not the produce of future industry. The whole law on the subject of bail in the United States is much the same as that of England. A debtor to the United States can only be released by obtaining a release under the United States' insolvent law. In order to be enabled to apply for a release under the insolvent laws of any particular state, a debtor must have resided in that state for a certain period, generally one year; and on the surrender of all property (if he has any), he obtains a discharge from prison, which is also a discharge from the debt itself, and as a personal discharge, is respected throughout the Union; but as a discharge from the debt, it often operates as such only in the state that grants the discharge. Between citizens of the same state it releases the debt as well as the person; between citizens of different states, or between a citizen and a foreigner, or between foreigners, the discharge depends on circumstances. If the suit be brought in the courts of any particular state, and the party has been released by the laws of that state, the debt is considered equally cancelled as if the controversy had been between citizens of the same state. If the debtor to the United States has applied for, and obtained the benefit of the United States' insolvent law, it can only be in cases where a judgment has been obtained against him, and he has been taken in execution. He

must, however, remain in prison for thirty days, and surrender all his property, which he must swear does not exceed thirty dollars, over and above his necessary wearing apparel; for if he has property beyond that amount, he cannot obtain the benefit of this law. By this discharge, the person only is released, so that property subsequently obtained from any source is responsible. In all other cases of discharge, under the insolvent laws of individual states, before noticed, the person or the debt are discharged (as mentioned above), but still with the reservation, that all property acquired by descent, gift, or devise, shall be subjected to execution, but not the future acquisitions of the debtor by other means.

Fugitive debtors from other countries can be sued and imprisoned only as if they were citizens of America, that is, by exhibiting against them aailable cause of action. They must remain in prison, if taken immediately on their arrival, until entitled by a residence in the state (usually for one year) to apply for the benefit of the insolvent laws. State citizenship is required only in a few of the states, the more general law being, that they may be discharged after a year's residence in the state in which they happen to be sued, whether they have become citizens or not. Foreigners become citizens of the United States after five years' residence. The acts of naturalization, the last of which was passed in 1816, require that an oath be taken before a state-court by a foreigner of good moral character three years before his admission, of his intention to become a citizen, and to renounce his native allegiance; and at the time of admission he must satisfy the court, that he has resided five or six years, at least, within the United States, and likewise take an oath to renounce and abjure his native allegiance, and to support the constitution of the United States.

America is in some respects, a laboratory for the rest of the world. It is the fittest region for experiment. From the first of January, 1832, imprisonment for debt has ceased in the state of New York; the fact is, there is so much more false capital in the United States than in England, that a creditor is not often one dollar the richer for having put his debtor into confinement. The example, if it succeed, will probably soon be followed in Massachusetts, where there is a strong party in favour of a similar experiment. Whilst I was in that state, a meeting was held at Boston, to consider of its propriety; but the united arguments of many speakers, tended to prove nothing more than what was most probably acknowledged

beforehand, by three-fourths of those who heard them, and into which all that can be said on the subject must ultimately resolve itself, namely, that the sufferings of an innocent debtor are highly unjust, and much to be lamented; but that it would be very objectionable to have no means of confining one whose conduct had been fraudulent. By the constitution of the state of Illinois, imprisonment for debt is disallowed, except in cases of fraud, or the refusal of the debtor to deliver up his property for the benefit of his creditors.

The question as to the power of any court or officer to remove a child from his parents on account of their misconduct, remains unsettled; but if either of the parents were dead, and the survivor an unsuitable person to take care of the child, application would be made to the orphan's court, which exists in every state. Its authority resembles that of the lord chancellor in cases of infants being wards of court. Wills, both of real and personal estate, are proved there; and all executors and administrators pass their accounts in this court, from whose decisions an appeal lies to the chancellor. All deeds are by law required to be registered. Wills are proved and witnessed as in England; and a similar law prevents a witness from taking a legacy. A case of fraud used in obtaining a will, the only fraud of which the English court of chancery does not take notice, is decided by the chancellor in some states; in others, it is usual to send it, as in England, to a jury.

The whole law of mortgage is, generally speaking, much the same as in England.

The proceedings in a chancery suit, differ only in the pleadings being a little more simple: a bill for instance, contains merely the stating and interrogating parts, and the prayer. Witnesses are examined, as in England, upon written interrogatories. The effect of an answer and the mode of using it in court, are also similar.

There is no such officer as an accountant-general. Masters in chancery are known only in some of the states. Their duties are somewhat similar; and matters are referred to any one of them whom the parties may agree upon. In New York, I observed that "Mr. A. master in chancery," was almost as frequently to be seen on the door, as the names of a counsellor and solicitor. In those states where there are no masters in chancery, the court

has a “Permanent Auditor,” who discharges nearly all the duties assigned to the masters in England.

The form of an action, the pleadings, and the method of obtaining evidence, are essentially the same as those used in England, generally. In some states the action of ejectment is unknown; in others, it has merely undergone some modification. Real actions, such as writs of right, writs of entry, are much used; the period of limitation has, however, been altered from that of England. The English law of prescription is acknowledged, with a very few necessarily constitutional exceptions. The period of limitation allowed in an action of assumpsit, also varies in different states; in some it is three years, in others it is six, as in England. Where the action of ejectment is in use, the period of limitation is in some states twenty years, as in England; in others, seven years is thought sufficient.

Juries are generally constituted as in England, with the exception of special juries, which are never formed.

Throughout the United States a counsellor is allowed to make a speech for the prisoner, and act generally in his behalf, as in a civil cause.

Every state in the Union has its rules for the admission of counsellors, solicitors, and attorneys. They generally require that a student shall have studied law with some counsellor for at least three years. On application for an admission as an attorney, the court usually appoints three gentlemen of the bar to examine into the moral and legal qualifications of the applicant. If he be previously and favourably known to them, the examination is almost nominal. If he be unknown, or be known, but with unfavourable impressions, the examination is proportionably more strict. When admitted as either counsellor or solicitor, he can generally practise in both characters, the distinction being nominal, excepting in the supreme court of the United States, where no person can be counsellor and solicitor at the same time. In the country particularly, it is usual for a lawyer to assume the duties of attorney, conveyancer, proctor, solicitor, and counsellor; but after having practised some time, he usually confines himself to the practice of a counsellor only. A barrister and solicitor are frequently partners: as I have before remarked, it would be impossible for any practitioner to obtain a livelihood, excepting in the larger towns, without exercising his abilities in both capacities. For the “materiel” of a great part of the foregoing remarks I

am indebted to the kind and able assistance of a gentleman of the Baltimore bar, and I have endeavoured that their accuracy should not suffer under my pen.

It would be tedious to enter into any detail of the different state constitutions. It is sufficient to remark, that their affairs are usually administered by a governor, a senate, and a house of representatives. The executive authority is vested in the governor, who has in some states the benefit of a council. In some states he is elected for a period of four years, but more usually for two. The legislature consists of a senate, and house of representatives: both, or the latter, are usually elected annually; but sometimes for a longer period, with modifications. In the state of Rhode Island, whose government is founded on the provisions of the charter granted to the colony by Charles the Second in 1663, and which is the only state in the Union that has no written constitution; the governor, senate, and judges are elected annually; the members of the house of representatives are elected every six months, or semi-annually, as they term it. In general, no other qualifications are required of voters but those of colour, age, sex, and residence. In nearly all the states the right of suffrage is enjoyed by free white citizens, who have resided for one year in the state, and six months in the country. In some of the states, colour is no bar. As to age, that of twenty-one years is the usual requisition. Every voter must of course be a citizen of the United States.

Without entering at large upon the hackneyed subject of universal suffrage, it may be sufficient to remark, that the intrinsic evils of the system are more or less acknowledged by a very large proportion of the better class of Americans, although they of course diminish in the same ratio with the increase of virtue and intelligence; the objection is not merely, that the uncultivated and the ignorant part of the community should be allowed the unqualified right of suffrage; but it lies in the corrupt influence to which it is open. Both the rich and the poor man have rights to be protected; but it must be unreasonable, that the wealthy and enlightened should be controlled by the needy. The object of my charity goes to the poll; and not only exercises as much political liberty as myself, but a great deal more; because the poorer classes being the more numerous, the government is, in effect, under their direction. If in addition to this it be considered, that they must frequently vote in compliance with the wishes of a superior, it follows,

that the most corrupt, or the most successful at intrigue, must enjoy the greatest share of political power. A person who does not in such a country as America, gain some sort of qualification by his industry is, surely, unworthy to be trusted with the right of suffrage. I was informed that votes were very rarely bought with money, and believed it; because where the voters and the candidates are so numerous, the disbursements must be very large, and the difficulty of concealment proportionately increased. They are rather commanded by considerations of place; and it is very evident, that a person who could be influenced by interest in one way, could easily be bribed in another, were it not for the fear of detection. The system of treating is common enough. "Why, Sir!" said an old woman to a gentleman of South Carolina, my informant, "I guess Mr. A. is the fittest man of the two, but t'other whiskies the best." The influence of petty demagogues is very great; there being usually two or three in every village. Naturalized foreigners, as a body of voters, possess great power in some places: in New York, where there are said to be nearly 30,000 Irish, their influence over the elections is much complained of.

The house of representatives of the United States is composed of members chosen every second year, by the people of the several states. In Virginia and Kentucky they are voted for, *vivâ voce*, and not by ballot, as in the other states. At present, one member is returned for every forty thousand persons, five slaves in the slave states counting as three whites. The present number is 216. As the number of representatives might be too large, in consequence of the increasing population, the constitution provides that the number should not exceed one for every 30,000, but that no state shall be without a representative. As the minimum only is there mentioned, the federal congress has the power of extending the number of electors necessary for the return of a member.

The senate of the United States is composed of two members from each state. They are chosen by the legislature of the several states, for the term of six years; one-third of them being elected every two years. The only qualifications necessary for a senator are—that he be thirty years of age, in conformity with the age of the Roman senator; and that he have been for nine years a citizen of the United States, and an inhabitant of the state for which he is elected.

The qualifications required of a member of the house of representatives are—that he be twenty-five years of age; seven years a citizen of the United States, and an inhabitant of the state where he is chosen. No property qualification is required in either case; and the consequence is, that the house of representatives is half filled with young lawyers. The only privilege it enjoys in its legislative character, which is not shared by the senate, is, that it has the exclusive right of originating all money bills.

Chancellor Kent, in his Commentaries, observes, “that the great object of the separation of the legislature into two houses, acting separately, and with co-ordinate powers, is to destroy the evil effects of sudden and strong excitement; and of precipitate measures, springing from passion, caprice, prejudice, personal influence, and party intrigue, which have been found, by sad experience, to exercise a potent and dangerous sway in single assemblies.”

No one can, for a moment, doubt the force of these remarks. It is the best arrangement that can be adopted in a republic: still it is but splitting one pillar into two; the interests and inducements are co-extensive. The senate of the United States and the British house of lords are, or may be, equally influenced by the love of their country, and both are intended for its protection; but the one is little more than another house of representatives, the other a most essentially distinct part of the government: both are bound by the ties of honour, and the duties of both are defined and exacted by the constitution; but those of the house of lords are dictated by the further necessity of consulting their own security, by a proper and constant interposition between the throne and the people. The interests of the one are the same as those of the house of representatives, the only additional power they enjoy consisting of an association with the president, for the purpose of making treaties, and in the appointment of government officers. The interests of the house of lords are identified with those of the house of commons, not merely with reference to property up to an extent usually far exceeding the amount of the qualifications necessary for obtaining a seat in that house; but they purchase an additional security to the constitution, by obliging the peers of Great Britain to keep a watchful eye on every attempt at encroachment upon the dignity of the crown, their own rank in the country, and their rights as “hereditary lawgivers.” In these times, when speculation is afloat, not as to what they will do, but as to what they dare

do, how true should they be to themselves. Their obligations are far more weighty than the “legal presumption” (to use the words of Chancellor Kent, when speaking of the senate with reference to the houses of representatives), “that the senate will entertain more enlarged views of public policy, will feel a higher and greater sense of national character, and a greater regard for stability in the administration of the government.”

The president of the United States must be a citizen of the United States, must have attained the age of twenty-one years, and have been fourteen years a resident in the United States. He holds his office for four years. He is elected at the same time as the vice-president, who is president of the senate, but who has no vote, unless the votes be equally divided. The president, vice-president, and all civil officers of the United States, are removed from office on impeachment for, and conviction of, treason, bribery, or other high crimes and misdemeanours. The president is commander-in-chief of the army and navy: he has the power by, and with the advice and consent of the senate, to make treaties, provided two-thirds of the senators present concur: he can convene both houses of congress, on extraordinary occasions; and adjourn them in case of their disagreement as to the time, to any time he may think proper: he appoints ambassadors, other public ministers and consuls, judges of the supreme court, and all officers of the United States whose appointments are not otherwise provided for by the constitution, and which shall be established by law, &c. &c. The president and vice-president are elected by electors appointed in each state equal to the whole number of senators and representatives to which the state may be entitled to in congress; but no senator, or representative, or person holding an office of trust or profit under the United States, shall be appointed an elector. The method of choosing these electors is threefold: by the state-legislatures; by general-ticket; and by districts. The two latter are more generally preferred, as the choice emanates more directly from the people. Four only of the states,—Delaware, South Carolina, Louisiana, and Tennessee, adopt the former. I think it would be tedious and unnecessary to give an analysis of these three methods; suffice it to remark, I have heard it regretted that the constitution did not limit the choice to one mode. Chancellor Kent says “there would be less opportunity for dangerous coalitions and combinations for party, or ambitious or selfish purposes, if the choice of electors were referred to the people at large; and this seems now to be the sense and expression of public

opinion.” When the electors have made out the requisite lists, they are sent up to, and opened in the presence of the senate and house of representatives; and the president and vice-president are chosen in the manner prescribed by the twelfth article of the amendments to the constitution. In the year 1801, the federalist candidates for the presidency and vice-presidency were Mr. Adams and General Pinkney; the republican favourites were Mr. Jefferson and Colonel Barr. The two latter obtained a small, but equal majority over the former; and to decide between them was the allotted office of the house of representatives. Mr. Jefferson was chosen after no less than thirty-five trials. In the mean time the people were kept in suspense; the tranquillity of the Union was endangered; the possibility of a recurrence of similar difficulties was forcibly impressed upon the minds of Americans; and an alteration of the clause regulating the mode of election of the president and vice-president was resolved upon. The old clause contained these words, “The person having the greatest number of votes to be president, if such number be a majority of the whole number of electors appointed; and if there be more than one who have such majority, and have an equal number of votes, then the house of representatives shall immediately choose by ballot one of them for a president, &c.” The mode of election was altered; but it may still happen that the vote of a single member of the house of representatives may decide it. In President Jackson’s Message of December, 1830, he says, that “the necessity for an amendment is made so clear to his mind by the observation of its evils, and by the many able discussions which they have elicited on the floor of congress, and elsewhere, that he should be wanting in his duty were he to withhold another expression of his deep solicitude on the subject. A contingency which sometimes places it in the power of a single member of the house of representatives to decide an election of so high and solemn a character, is unjust to the people; and becomes, when it occurs, a source of embarrassment to the individuals thus brought into power, and a cause of distrust of the representative body. Liable as the confederacy is, from its great extent, to parties founded upon sectional interests, and to a corresponding multiplication of candidates for the presidency, the tendency of the constitutional reference to the house of representatives is to devolve the election upon that body, in almost every instance; and whatever choice may thus be made among the candidates thus presented to them, to swell the influence of particular interests to a degree inconsistent with the general

good.” The election of the president, immediately by the people, without the intervention of electors, is here hinted at. There is a levelling spirit abroad in the United States, that sheds its influence over new laws and institutions: if there be a possibility of a tendency towards either the federal or the democratical principles, that tendency is sure to be democratical; and it is by no means improbable, that such a mode of election may, at some future day, be contended for and adopted. Chancellor Kent says, “that the mode of appointment of the president, presented one of the most difficult and momentous questions that could have occupied the deliberations of the assembly which framed the constitution; and if ever the tranquillity of this nation is to be disturbed, and its peace jeopardised by a struggle for power among themselves, it will be upon this very subject of the choice of a president. It is the question that is eventually to attest the goodness and try the strength of the constitution, &c.” Should the mode of election be altered, as I have just supposed it may be, we may bid adieu to the Union forthwith. When we consider the increasing population of the United States, the immense variety of interests, and that every free inhabitant feels, I may say, personally concerned,—whether he be really so or not,—in the success of his favourite candidate, we can, in some measure, foresee even under the present mode of election, how violent, how convulsing, at no very distant period, will be the struggle and party-feeling exhibited at the election of an officer, whose opinions on the construction of the articles of the constitution, during his short ascendancy of four years, will affect millions with a sentiment of attachment or disgust. When General Jackson came into office, he immediately thought proper to turn out several hundred subordinate officers, whose places were filled up by his own party. The number of those who lost their places at the commencement of any preceding presidency was extremely small, bearing no proportion whatever to those dismissed by the General. The increasing weight and importance of the affairs of the United States rendered it partly a matter of expediency to do so; and, in all human probability, future presidents will find themselves obliged to follow the example. I make no remark on the late petticoat confusion in the United States’ cabinet; like the battle of Navarino, the best that can be said of it is, that it was an “untoward event.”

The salary of the president is 25,000 dollars (5625*l.*) a year, with the president’s house at Washington for his residence; but his expenses do not equal his income. Mr. Calhoun, the vice-president, receives but 5000 dollars

(1125*l.*) a year. The secretaries for state, treasury, war, and navy, and the postmaster-general, receive a yearly salary of 6000 dollars (1350*l.*) each, and work very hard for it, their time and attention being fully occupied, and often till a late hour of the night.

In the Message of 1830, to which I have before referred, General Jackson invites the attention of congress to the propriety of promoting such an amendment of the constitution as will render the president ineligible after one term of service; and yet General Jackson is again a candidate, and most probably a successful candidate, for the office of president at the next election, on the first Wednesday in December, 1832, preparatory to his taking office for the twelfth presidential term of four years, commencing on the 3d of March, 1833.

The election of the next—and heaven knows how many future presidents!—will depend upon the known opinions of either candidate upon “the Cherokee case;” upon the question of the renewal of the charter of the United States’ Bank, to which I have before adverted; on Masonry; on whether there is or is not a power granted by the constitution to lay out the federal funds upon internal improvements throughout the Union; and lastly, on the still more important question as to the continuance or modification of the existing tariff. The candidates will most likely be General Jackson, the president of the day, Mr. Clay, Mr. Wirt, and Mr. Calhoun.

The opinions of General Jackson are in favour of the removal of the Cherokees: he is averse to the renewal of the charter of the United States’ Bank: he is a Freemason, and believes that the application of the federal funds to internal improvements would be unconstitutional. His opinions on the tariff question are oracular and uncertain.

Mr. Clay is opposed to the removal of the Cherokees; he is in favour of the renewal of the Bank charter; he is a Mason; is an advocate for internal improvements; and a staunch friend to the protecting, or, as it is called by its supporters, the American system.

Mr. Wirt, a gentleman of Maryland, was the counsel for the Cherokees before the supreme court. He has lately been started as a candidate by the Anti-masons. Since the abduction and supposed murder of William Morgan, who, a few years since, wrote a book revealing the secrets of Freemasonry, the Anti-masons have become gradually more and more numerous. They

profess a hatred of all secret societies as dangerous and unconstitutional; and although they will not be able to secure the presidency to themselves, yet it is probable they will be sufficiently strong to defeat the election of either of the more obnoxious candidates. Mr. Wirt's opinions are supposed to coincide with those of Mr. Clay generally; but with respect to the internal improvement system, and the tariff question, he is at present uncommitted.

Mr. Calhoun, the vice-president of the day, is the great champion of the interests of the southern states, the nullifiers, and the anti-tariff party; and in that character, if at all, he will be elected to the presidency. His opinions are in favour of the removal of the Cherokees, and of the existence of the United States' Bank. On the subject of internal improvements his opinions are said to be changed, he having been originally an advocate of the system when secretary at war in 1819. He is a "Nullifier," although his situation as vice-president has prevented him from showing himself in that character so uniformly as he would have done. The term "nullifier," which, like the word "radical" in England, has now grown into common use, was first adopted by the members from South Carolina, in congress, about two years ago; the doctrine they profess was broached at the same time. A nullifier is a person who holds that the federal constitution is merely a compact or league between the several states; and that each state has a right to decide for itself concerning the infractions of that league by the federal government, and to nullify or declare void an act of the federal congress within its limits.

Whatever may be urged by the party who are opposed to the opinions of General Jackson, with reference to the advancement of prosperity in the United States by his internal policy merely, his administrations of the affairs of his country with regard to its relations with foreign powers, has certainly been generally successful. He has obtained for her the command of a profitable trade with the British West Indian and North American colonies, thereby settling a question which had already been the subject of six negotiations. The president, in his Message, at the second sitting of congress, on the 7th of December, 1830, says, that this desirable result was promoted by the liberal provision of congress, in allowing the ports of the United States to be open to British shipping before the arrangement could be carried into effect on the part of Great Britain, thereby requiring a similar act of liberality on the part of the British government in 1825.

He has recovered claims upon the Brazils, Columbia, and Denmark, from which kingdom the payment of 650,000 dollars is secured to the citizens of the United States, for spoliations upon their commerce in the years 1808, 9, 10, and 11. Similar claims upon France, for injuries during the war, have also been lately adjusted with that power.

He has concluded a treaty of commerce with Mexico; and by another with Columbia, he has freed the American merchants from the discriminating duties which had been imposed upon them; and by another with Turkey he has secured a free passage for American merchantmen, without limitation of time, to and from the Black Sea, by which their trade with Turkey is placed on an equal footing with that of other nations.

By a compact made between the United States and the state of Georgia, on the 24th of April, 1802, and long before any gold mines were thought of, the United States engaged to extinguish for the use of Georgia, “as early as the same could be peaceably obtained on reasonable terms, the Indian title to the county of Talassee, and to all the other lands within the state of Georgia.” As gold mines, within two or three years, have been discovered in that state, it has naturally followed, that the inclination of the Indians to remain, and that of the Georgians to get rid of them, has become far more decided than formerly. The Indians (Cherokees) however, claim a voice in the affair of their removal from the land of their fathers; and that their assertions have other foundations than those of an appeal to common justice and humanity, is proved by the fact, that from the 28th of November, 1785, the general government has made with them no less than fifteen different treaties, thereby plainly acknowledging their independence, and their capacity and power to treat. Within the last two or three years, however, gold, as I have before remarked, has been discovered on the territories of the Indians; and the state of Georgia has applied to the general government to fulfil the contract, and rid them of the Cherokees. The general government would be willing to come to a proper arrangement with the Cherokees, but they are unwilling to go. The number now left is about 15,000; the remainder of the tribe, since the year 1809, having acceded to the offer of the United States, and removed to the lands provided for them beyond the Mississippi. When this part of the tribe petitioned to be allowed to remove, the answer of the president (Mr. Madison) contained the words, “those who are willing to remove may be assured of our patronage, our aid,

and our good neighbourhood.” The Georgians, however, happen to think that this is just the time for them to go, and they forcibly prevent them from digging for gold on their own land, saying, that every year will but increase their anxiety to remain; and that they have no right to dig for gold when the reversion of the land is in the state. These disputes yet remain unsettled.

The Cherokees are far advanced in civilization; and have among them men of very superior abilities. They adopt in part the costume of Europeans; they have schools, and churches, and a printing press among them; and were fully competent to understand the following precious piece of humbug, forming part of President Jackson’s message to congress, in 1830. “Humanity has often wept over the fate of the aborigines of this country; and philanthropy has been long busily employed in devising means to avert it; but its progress has never for a moment been arrested, and one by one have many powerful tribes disappeared from the earth. To follow to the tomb the last of this race, and to tread on the graves of extinct nations, excites melancholy reflections. But true philanthropy reconciles the mind to these vicissitudes, as it does to the extinction of one generation to make room for another. In the monuments and fortresses of an unknown people spread over the extensive regions of the west, we behold the memorials of a once powerful race, which was exterminated, or has disappeared, to make room for the existing savage tribes, &c. &c. The tribes which occupied the countries now constituting the eastern states, were annihilated or have melted away to make room for the whites. The waves of population and civilization are rolling to the westward; and we now propose to acquire the countries occupied by the red men of the south and west, by a fair exchange, and at the expense of the United States, to send them to a land where their existence may be prolonged and perhaps made perpetual. Doubtless it will be painful to leave the graves of their fathers; but what do they more than our ancestors did, or than our children are now doing? To better their condition in unknown lands, our forefathers left all that was dear in earthly objects; our children by thousands yearly leave the land of their birth to seek new homes in distant regions. Does humanity weep at these painful separations from every thing animate and inanimate with which the young heart has become entwined? Far from it! It is rather a source of joy that our country affords scope where our young population may range unconstrained in body or in mind, developing the power and faculties of man in their highest perfection. These remove hundreds and almost

thousands of miles at their own expense, purchase the lands they occupy, and support themselves at their new home from the moment of their arrival. Can it be cruel in this government, when, by events which it cannot control, the Indian is made discontented with his ancient home, to purchase his lands, to give him a new and extensive territory, to pay the expenses of his removal, and support him a year in his new abode? How many thousands of our own people would gladly embrace the opportunity of removing to the west on such conditions. If the offers made to the Indians were extended to them, they would be hailed with gratitude and joy.

“And is it supposed that the wandering savage has a stronger attachment to his home than the settled, civilized Christian? Is it more afflicting to him to leave the graves of his fathers, than it is to our brothers and children? Rightly considered, the policy of the general government towards the red man, is not only liberal but generous. He is unwilling to submit to the laws of the states, and to mingle with their population. To save him from this alternative, or, perhaps, utter annihilation, the general government kindly offers him a new home; and proposes to pay the whole expense of his removal and settlement.”

I will here introduce a few remarks on what is called the gold region in the United States, with the kind assistance of Mr. Damm, a Swedish gentleman resident at New York, and connected with the gold mines. I have selected them, with a very few alterations, from the reports on the subject lately published by the government. It is now about thirty years since gold was discovered in North Carolina; it was found in the sand and gravel of different water-courses, first in Cabarras county, soon afterwards in a county of Montgomery in that state. Until within a few years past, the process of washing for gold was principally confined to the two counties just named. The greater portion of the gold thus procured was found in small pieces, varying in size from one pennyweight down to particles of extreme minuteness; at most of the mines, however, it is not uncommon to find pieces of a much larger size; for example, at Cabarras, a single piece has been found weighing twenty-eight pounds avoirdupois, besides several other pieces varying from four to sixteen pounds. The proprietor of the same mine affirms, that about a hundred pounds avoirdupois have been found in pieces, about one pound in weight; these large pieces, however, compose but a small portion of the whole product of the mines.

At a mine in Montgomery county, a number of pieces of about one pound weight have been found. One of them weighed four pounds eleven ounces, and another three pounds. In Anson county, during the summer of 1828, a piece of gold weighing ten pounds, another of four pounds weight, together with a number of small pieces, were taken up out of the sands and gravel of Richardson's creek. These discoveries have been chiefly made in or near beds of streams; but in some instances deposits of considerable extent have been found on the sides and tops of hills.

It was not, however, until about six years ago, that the gold mines, properly speaking, were discovered in North Carolina, that is, gold in regular, well-defined veins. This discovery, like that of the alluvial deposits, was in some measure accidental. A person, while washing the sand and gravel of a small rivulet for gold in Montgomery county, observed that he could never find it beyond a certain spot in ascending the stream; but at the point where the gold seemed to cease, he discovered a quartz vein running into the hill on one side of the channel, and at right angles with the course of the rivulet. Having frequently taken up out of the bed of the stream, pieces of quartz with bits of gold attached to them, he came to the conclusion that the gold found scattered below, must have come out of the vein of quartz; and he determined to pursue it into the hill. He had done so but for a few feet, when he struck a beautiful deposit of the metal in a matrix of quartz, and subsequently another in carbonate of lime. In following this vein about thirty or forty feet longitudinally, and at a depth of not more than fifteen or eighteen feet, he found a succession of what are technically termed nests, from which he took out more than 15,000 dwt. of virgin gold. Soon afterwards the mine fell into other hands; and the working of the vein has been discontinued in consequence of the quantity of water which made its appearance; though it is understood that it will be resumed in a short time. This discovery of the metal in regular veins, presented the subject in a new and interesting point of view; and directed a search for gold among the hills and high grounds, and particularly for veins traversing the earth.

In the course of the summer, after the developement of Barringer's mine, some valuable mines were discovered in Mecklenburgh county. The product of these, worked in the rudest manner, without skill or capital, was so great as to excite general notice; and stimulated the land-owners in that section to

search for these hidden treasures. The mines now began to attract the attention of the public; and several persons of enterprise, and some capital, repaired to the spot. Some of them made investments, began to erect machinery, and worked the veins with system and regularity. The success of the first adventurers in this new enterprise, and for a time the attention of every body who sought to engage in the mining business, was exclusively turned towards Mecklenburgh county. The consequence was, a constant search for gold was kept up in that county, and not unattended with success, as many very promising veins were discovered. These Mecklenburgh mines were the first that attracted attention; and the first that were examined and worked with skill and management. They were, of course, greatly in advance of every other part of the region, and the products have been greater in proportion to the labour, and capital, and skill that have been applied to them.

In the course of the succeeding year, a very extensive and rich vein was discovered in Guilford county; and it was soon operated upon by more than one hundred hands, who flocked in from the country around, and received permission to dig there. The discovery of one vein in a district, furnishes the means of finding others. The people of the neighbourhood visit it, examine the appearances of the ores, and other signs and indications, and thus in some degree are qualified to make a search on their own lands or elsewhere. This was the case in Guilford county; the discovery of the first vein was soon followed by the opening of several others. The same plan will be followed in every district, until the gold region be explored, and the places which exhibit any external signs of gold be thoroughly known. About this time Cabarras county, which had hitherto been only considered as productive in its washings, was ascertained to be a vein-mining district; and discoveries to the same effect were made about the same period at Lincoln.

It is less than two years and a half ago, since gold in veins was first discovered in Davidson county; it having previously been found only in and near the beds of rivulets and creeks. Within the last few months, veins have been opened in the adjoining county of Randolph. Rowan, situated between Davidson and Cabarras counties, embraces a considerable section of the gold region, and contains many veins whose external appearance is good and promising. The metal is also found in the streams: some few veins have

also been opened in Tredell county, and are now in a course of developement.

While progress had been thus making in opening veins, and in ascertaining their situations, some valuable discoveries of stream deposits occurred in a section of the state of North Carolina, hitherto not suspected to be within the range of the gold region. In Burke county, one of the most mountainous of the state, and one, two, or more feet under the surface, a layer of sand and gravel is found, varying from a few inches, sometimes to more than a foot, in thickness; in this layer the virgin gold is found, generally in small particles about the size of a pin's head, and very often as large as a grain of corn; it is separated, and collected from the accompanying matter, by washing. Water is abundant; and the absence of clay and adhesive matter in the auriferous layer, makes the process of washing exceedingly easy. A number of these deposits have already been found, and some of them have proved to be very productive. It may be here mentioned, that in the adjoining county of Rutherford, gold in deposit has also been found; but as yet, not much labour has been expended in that quarter. One vein, which is very encouraging, has been worked regularly; another vein of good expectations has been discovered.

In short the veins and places of deposit are very numerous, and scattered over the whole country, with a few exceptions; and the gold which is produced finds a market so readily, that it is difficult to give a very correct estimate of the product of mines of the Carolinas, Virginia, and Georgia; but it was said to amount to 500,000 dollars in 1830, from North Carolina alone. During that year, nearly the whole gold coinage of the United States' mint, was from native gold. The coinage was 643,105 dollars in gold coin: of this, 125,000 was derived from Mexico, South America, and the West Indies; 19,000 from Africa, 466,000 from the gold region of the United States, and about 33,000 from sources not ascertained. Of the gold of the United States above mentioned, 24,000 may be stated to have come from Virginia, 204,000 from North Carolina, 26,000 from South Carolina, and 212,000 from Georgia.

It may not be out of place here to remark, that hereafter the quantity of domestic gold that will be received at the mint, will bear a less proportion to the whole amount found, than has been the case heretofore; the reason is this: hitherto, Philadelphia may be said to have been nearly the only market

for the article; goldsmiths and merchants at New York, and other cities in the Union, were unacquainted with it; and therefore for fear of deception, dealt but little in it; this occasioned the greater part of the gold to be taken to Philadelphia, where, if not sold to the goldsmiths or merchants, it was deposited in the mint; so that at all events a portion of it always contrived to reach that establishment. But now the case is different: a market for the gold is opening in most of the cities of the United States; goldsmiths and jewellers, having ascertained its comparative purity, which is said to be greater than that of the gold of Mexico or the Brazils, will generally become purchasers for their own use.

That there will be an increase in the products of the mines every succeeding year, admits of very little doubt, when the gradual enlargement of the gold region, extending through Virginia, North and South Carolina, and Georgia—the number of persons turning their attention to the business—the mills that are now erecting in various places—the improvements in the mode of working and general management, are made the subject of consideration.

The improvements in machinery have been considerable within the last two years: it is believed, however, that as yet they are far from being perfect. The defects in the present mode of extracting the gold are well known to those most extensively engaged in the business; and some of the miners, even at this time, are turning their attention towards the introduction of other methods, promising more economy and greater results. Grinding the ore in water with the vertical stone, which is the method practised in Chili, is now the process most generally used; but the liabilities of the vertical, or Chilian mill, to become disordered—the waste of gold and quicksilver—the irregularity of results from the same ores—the want of proper checks on the workmen, together with minor objections, will probably, in a few years more, cause these mills to be in a great measure discontinued, except in small establishments, and for certain classes of ores in the larger ones.

The auriferous veins of North Carolina and Virginia have not yet been sufficiently developed. As yet not a single shaft in the whole range of country (except at the Charlotte Mine, near a small town of that name, worked under the direction of the Chevalier de Rivafinoli) has been carried down to the depth of a hundred feet. Seventy to eighty feet is the greatest

depth yet attained; and thirty feet is more than an average on the main excavation: as far, however, as these experiments have gone, they furnish no reason to doubt the durability of the mines; for thus far, the well-defined veins not only retain their first size, but, in many cases, become larger, and more often than otherwise, improve in richness. This circumstance has given rise to an idea among the common workmen, that the vein grows richer about the time it reaches water. On the whole, when it is considered, that in Mexico, Saxony, and other great mining districts, veins have been successfully followed downwards more than 2500 feet; the probability that the veins in the United States will improve, is, at least, as great as that they will become poorer.

Nor is it in the nature of things, that any considerable portion of the whole number of veins existing there, much less all of them, have already been discovered.

The usual way that discoveries are made, is to take some of the earth or gravel lying on the top of the rocks, and wash it in an iron pan. If any fine particles of gold are found, the vein is known to be auriferous, and its degree of richness and value is judged of by a variety of circumstances. This fine gold without doubt comes out of the vein, the top of which had been disintegrated, and fallen to pieces. There are many bold veins in every district, the tops of which show no gold, whilst other indicating substances are abundant. The probability is, that some of them at a greater depth may prove highly auriferous.

Reviewing all that has been said on the subject, it will be seen that the whole business is yet in its infancy; and the only cause for wonder is, that so much has been done in so short a time. Ignorance and prejudice were to be overcome, and ridicule was liberally bestowed on the few who engaged in the business.

If the work proceed as rapidly for some years to come, as it has for the three years past, the changes in the appearance of things will become very striking. There are some persons of intelligence, mostly however at a distance, who seem to apprehend that the mines of the United States will produce consequences similar to those that followed to Spain and her colonies from the discovery of the mines of South America and Mexico. Without stopping to inquire how far these consequences were occasioned

by the mines of the New World, it may be remarked with truth, that no sort of analogy is to be found in the condition and circumstances of the two countries; and that neither the statesman nor the philosopher need anticipate that the results will be similar.

That great effects will be produced is beyond question: and these will show themselves in the increasing prosperity of the country. Among the advantages that will follow from the developement of the mines, is the encouragement they give to agriculture, in the withdrawal of some of its surplus labour, and giving it new employment. They will create home markets for the surplus products of the farmer; and this will encourage him to improve his farm, and increase the productiveness of his lands. As yet, this influence has not been much felt; but a close observer may see that the improvement has commenced, though it will not be generally perceptible until the division of labour more fully takes place between the farmer and the miner. Mining and farming are two very different pursuits; and farmers will soon see that it is prudent for them to stick to the plough, and sell or let the auriferous veins to the miner.

An important change will also take place (at a very distant period) in the staples of the gold country; cotton will be less and less cultivated in the mining districts; while the bread stuff, farinaceous, succulent vegetables—and stock, will claim the chief attention. This change in the staples of the agriculturist, will in itself produce important results. The opening of the mines, and the prospect of profitable employment, will in some degree check that spirit of emigration which has been carrying off so many enterprising and useful citizens, and will bring into the country men of wealth intelligence, business habits, and general enterprise.

The opening of the mines has been attended with one primary and bad effect; that of creating a mania for speculation. The usually attendant failures and mishaps will co-operate with other causes, to throw the mines into the hands of a distinct class of men, who, having a knowledge of the business, and having capital at command, will eventually conduct all the mining operations in the country.

Whether the effects be good or bad, their influence will not be confined to North Carolina. It will be felt in Virginia, South Carolina, and Georgia,—

the people in the upper parts of these states having far more interest in the mines than is generally supposed.

When the cheapness of obtaining the timber necessary for machinery, the certainty of labour, and the security of property under such a government as that of the United States, are deeply considered; these mines might be far more worth the attention of an English company than many a scheme in which English capital is already embarked. Applications to government for charters will most probably be more numerous in every succeeding year. The capital required to form a company would not, I was informed, exceed 40,000*l.* or 50,000*l.*

No one can visit the United States without hearing of President Jackson's celebrated "veto" on internal improvements, and every disinterested individual would, I humbly think, be ready to admit that the sentiments it contains are just and valuable, because they display a solid attachment to the letter of the constitution. By the articles of the constitution, the powers of the federal government, with reference to its expenditure of the national funds upon internal improvements in the Union, are confined to the establishment of post-offices and post-roads. On the 27th May, 1830, in the firm persuasion that the words 'post-roads' could apply only to those which might prove of general benefit to the citizens of the Union, and not to those which conferred an advantage only upon the inhabitants of any particular state, a bill entitled "An Act authorising a subscription of stock in the Maysville, Washington, Paris, and Lexington turnpike road Company," was returned by the President to the house of representatives, without having received his signature. In the veto by which it was accompanied, he shows that "grants for internal improvements from the national treasury, have been made professedly under the control of the general principle, that the works which might be thus aided should be of a general, not local—national, not state character; and that a disregard of this distinction would of necessity lead to the subversion of the federal system. The road in question had no regard to any general system of improvements, and was exclusively without the limits of the state; starting at a point on the Ohio river, and running out sixty miles to an interior town, and even as far as that state was concerned,

of partial, not general advantage.” In another part of the veto he adds, “that if it be the desire of the people, that the agency of the federal government should be confined to the appropriation of money in aid of such undertakings in virtue of state authority; then the occasion, the manner, and the extent of the appropriations, should be made the subject of constitutional regulation.” In about three years, the national debt of the United States will be paid off, and the government will find itself in possession of a surplus revenue of ten or twelve millions of dollars. To divide it amongst the states, will be unconstitutional, because it will render the states too dependent on the favour of the federal government; and as it is collected chiefly by means of the tariff, it cannot cease to exist so long as the tariff remains in force.

Without a limited and defining authority, arising from a constitutional adjustment of this power of distribution upon equitable principles, it is beyond a doubt that neither Mr. Clay, nor any other person who may be president, could give any thing like universal satisfaction amid the “scramble for appropriations,”—as the veto has it,—which could not but ensue upon the conflicting and uncontrollable variety of interest that is annually increasing in the American community.

The progress of reform in England, and in Europe generally, is watched with the most intense interest by the Americans. A deep feeling of regard and sympathy for the mother country, as they term it, is still general, and I think increasing; and though most of the Americans believe their own country is the first in the world, they are still reasonable enough to assign to Great Britain the second place in the scale of nations. Those airs which it must be admitted so frequently render an Englishman ridiculous, when travelling on the old continent, would be entirely thrown away in the United States. All pretensions to importance are disregarded, even without being canvassed, as they might be in Europe; but so long as an Englishman behaves with propriety, the Americans will entertain more respect for his name and character, than they care to avow openly. They wish us well through our troubles, and watch with sincere pity what they consider to be the approaching downfall of our constitution: but at the same time their

national vanity receives something very like gratification from the belief, that we shall be forced to adopt a form of government similar to their own. That the American form of government is admirably adapted to a new country, that that country has astonishing resources, and that the Americans lose no time in making the most of them, (I speak of America as a country, not of the Union, for America must thrive come what will to the government) that it has thriven under its institutions, and is at present enjoying an exemption from many evils incidental to older countries, it would be an absurdity to deny. But the natural causes of prosperity which the Americans so pre-eminently enjoy, must not be mistaken, as they most fondly and frequently are, for the positive effects, and little more than the positive effects, of a good government, however good and well adapted that government may be. The American constitution has never been tried. That it was nearly a bankrupt at the close of the last war, was a trial of the resources of the country, not of its institutions. Forty years is no time to test the strength of a government like that of the United States, when civilization is extended over so small a proportion of them. The good is perceived at present; the evils are latent, and comparatively little felt. But there are among the institutions of the Union, the seeds of discord and confusion, whose growth is only stifled by the bustle of commercial pursuits, and that panacea for every political disease, a fine country abounding in resources, and of small population in comparison to its extent. It is possible that the mischief will not be felt, so long as there is no real motive for disaffection; so long in fact as the people are not in want, which may not be the case while ground yet remains to be cultivated.

In England and America universal suffrage would be alike only in name. In America it is true, that almost every one can vote; but then it is equally true, that excepting in the larger cities in which may be always found, even in America, a certain proportion of persons without any ostensible means of getting a livelihood, every one has at least a prospective certainty of the acquisition of property. The poor, comparatively speaking, are so few, that universal suffrage is, at present, but a mere hydra in embryo. Were the present course of improvement to proceed without interruption, from what the political economists call the disturbing causes,—were luxury to be kept at a distance, and a forced equality and contentment to be preserved by a strong and universal exertion of the democratic principle,—it would be demonstrable, that the American constitution would last for centuries; or in

other words, till the country became so thickly peopled as to be subject to the evils resulting to England, and the older dynasties of Europe. If a democracy be essentially the best form of government, it would follow that a surplus population, that unhappy proof of its excellence, would but be called the sooner into existence. Then will come the real moment of trial, whether a democracy can exist under the pressure of want—whether those that have any thing to lose, would not be at the mercy of those that have not—whether an equality of condition would not be considered as conferring a title to a community of goods—whether, when such a state of things is apprehended, a standing armed force, be it called by what name it may, would not be necessary, not to repress foreign invasion, but to put down domestic commotions—whether taxes must not be levied for its support—and whether those taxes would not be found exceedingly troublesome. In an article in the *American Quarterly Review*, (July 1831), evidently written in a wantonness of spirit that savours of ambition, or disappointment, or of both, and in which we are kindly told the easiest road to ruin, it is remarked that “our forefathers were habituated to the European system, but they built up the republican colonies with infinite ease.” But may it not be here remarked, that as it is the boast, and justly the boast, of the Americans, and of the New Englanders in particular, that the tone of liberty which pervades their institutions is derived through the blood of the Puritans, who did build up the colonies with infinite ease, and whose descendants are still living; so it must not be forgotten that the Hampdens, the Hazelrigs, the Cromwells, and others, who were prevented from embarking for America by the order of their obstinate and ill-fated monarch, were men of the same opinions as the “forefathers” mentioned above; that they did remain behind—that they did fight against the monarchy of England—that they did obtain the victory—that they did enjoy the ascendancy to their hearts’ content—and that they did establish a commonwealth in England, not to flourish for ever as an example to the world, but to be overthrown by a military force, which brought back the son of the last king amid the acclamations of every rank of society.

Supposing the blood to be shed, and the horrors to be passed through, that must be shed and passed through before the experiment of a commonwealth could be again tried in England, is it possible that it could exist, situated as Great Britain is with reference to the other powers of Europe, without an unemployed standing army? and then again, is it

possible that it could exist with one? Where in the annals of the world can the compatibility of the one and the other be pointed to? England is but paying the penalty necessarily consequent on her career of prosperity. Her constitution can no more be blamed for the existence of a standing army, than for a superabundant population, or the enormous size of London.

By what then is it probable that the career of the Union will be disturbed? Are not wealth and luxury to have their due weight? It is to the credit of the Americans, that individual wealth has never yet been employed for any unconstitutional purpose; but it is nevertheless true, that an aristocracy is most undeniably springing up in every city of the Union. In the course of time many large fortunes will be amassed, and opulent families will be distributed throughout the country. It will be but in the spirit of human nature, that a person in possession of what in common American would be termed “an elegant location,” should wish to have upon it a better house than his neighbours, and that another should wish to have a still better; and is it to be believed that the head of a rich and ambitious family will be for ever, as now, restrained by the voice of public opinion from doing his utmost to prevent a fine place from going out of his family? Can the inclination remain in thralldom, and the man be said to enjoy liberty? Will not one example be followed as a precedent by five hundred others? and will not an hereditary aristocracy be produced in this manner?

The system of entails in England is considered by the Americans as highly pernicious; but their idea of its extent is far beyond the truth. On this head I have heard great ignorance displayed by them. Some think that an entailed estate cannot be destroyed at all; but that an entailed estate cannot, in any case, be destroyed without the consent of the eldest son, is the more common error; one which is prevalent with the uninitiated even in England, and is, of course, still more so among the Americans, who are but little aware that an estate cannot, in any case, be rendered unalienable for more than one generation; or, technically speaking, for more than a life or lives in being, and twenty-one years afterwards. This rule has been a favourite with English lawyers, because, on the one hand, it prevents landed property from being unavailable for commercial purposes for a longer period than one generation; and, on the other, it makes reasonable allowance for the English policy of keeping up the families of our nobility and gentry. From whence then does the vulgar error principally arise? From this circumstance: under

the usual form of settlement, the father has the present enjoyment of the estate, and the son has the inheritance in tail in expectancy; and in this case the father and son, as soon as the latter is of age, may do what they please with the estate; and it is a very common arrangement for them to agree to make a fresh settlement, which ties up the estate for another generation. But this is only an exercise of their absolute power of disposal, which they might, if they pleased, exercise by selling the estate, or otherwise getting rid of it. If no fresh settlement has been made, and the son outlives the father, he alone may do what he pleases with the estate, without asking the consent of his eldest son or of any other person. The Americans are little aware that there is not a nobleman's estate in the country, with the exception of Blenheim, Strathfieldsay, and perhaps half a dozen others, where the reversion is in the crown under some very old grant, which could not be absolutely disposed of, *once, at least*, in every generation. That there is a power of making unalienable entails in Scotland, (with irritant and resolute clauses, as the Scotch lawyers have it), where the person making them is not indebted at the time, is a truth which I do not conceive could have given rise to the error respecting those in England.

The proceedings at the next session of congress will be of the utmost importance, and before this work be out of the press, the tariff question will probably have given rise to as much angry discussion as has ever been heard within the walls of the capitol.

The tariff, that is to say, the principle of effectual protection to domestic industry, is supported by about two-thirds of the American people. Manufactures sprung up during the late war, and millions of dollars have since been invested in them on the faith of the tariff. After the conclusion of hostilities, the war duties were repealed generally; but some of them were continued for the protection of domestic industry. This was effected in 1816, and by the influence of the southern votes; and, strange as it may appear, was especially supported by the members of South Carolina; whilst the northern members were not generally partial to the measure. The southern states at that period, were averse to the expense of a naval establishment: they disliked foreign commerce, because it tended to embroil

the country in disputes with the European powers, and they were therefore friendly to a moderate tariff. In 1824, additional protection was given to manufactures. It was opposed by New England and the south, and supported by the middle and western states. In 1828, still further protection was given, notwithstanding a violent opposition from the southern states, who now felt the error they had been guilty of.

The tariff question, then, is simply this. The northern states are manufacturers; the southern states are cotton growers. The southern states have never objected to such duties on imported foreign manufactures, as would be sufficient for the purposes of a revenue equal to the government expenditure; but beyond what is necessary for the attainment of that object, they are entirely averse to the tariff, because Great Britain does not buy so much of their cotton as she would if her manufactured goods were not excluded from the markets of the United States, by means of the protecting duties. The inhabitants of South Carolina are most violently opposed to the tariff. One-third of them would, if they could, secede from the Union immediately.

In the year 1823, the crop of cotton amounted to 420,000 bales. In the year 1831, the crop has been ascertained to be 1,070,000 bales, of which, 165,000 are consumed in the home manufactories, and the remainder is exported, chiefly to England.

Certainly, if ever there was a country upon earth where the principles of free trade could be allowed an existence, that country is the states of North America, so long as they remain united. When we contemplate their unbounded resources, and their endless extent, we must admit that they afford scope for a species of energy altogether without present parallel in the old continent; and it is difficult to believe, that free trade should not be a part of their system, not only because it would correspond with the boasted freedom of their institutions, but on account of the certainty of benefit they would ultimately derive from it. But from the entirely different sources of wealth of the northern and southern states, there emanates a disparity of interests, which, with reference to the enormously increasing influence of the new cotton states, are, it is plain, but partially developed at present. The settlement of disputes arising from the differences of soil and climate, in themselves uncontrollable by legislative interference, must be a subject far more difficult to grapple with, than that which merely relates to internal improvements, which may be assisted by an alteration of the constitution. Many Americans will probably tell you as they have told me, that the Union is becoming stronger and stronger; they will assure you that there is a growing conviction, that the complaints of the southern states are without foundation, that their sufferings are chiefly imaginary, and that their citizens will, sooner or later, come to the same opinion; that four-fifths of all the

articles that are taxed, either heavily or lightly, are consumed in the northern, western, and the tariff states, while at the same time a home market exists for from 150,000 to 200,000 bales of the best cotton of the southern states, at the best prices: that the party war which rages in newspapers throughout the Union, means nothing at all; and that, to use the quotation so well applied by Mr. Adams in his last 4th of July oration, delivered at Quincy, near Boston, "We angry lovers mean not half we say." It is probable that some part of what is said by an American country newspaper on the subject of party, may be nonsense; but one cannot help being a little less sceptical, when higher authorities, and the proceedings of public meetings, are consulted, which, if we are to judge by the excitement they occasion, are not quite a farce, whatever county meetings may be in England.

The report of the committee read at the anti-tariff convention, which took place at Philadelphia on the 5th of October, 1831, contains amongst others, the following strongly worded passage, speaking of "that feeling of resentment which is goaded into activity by a sense of oppression, and embittered by the recollection, that it is the hand of a brother that inflicts it," it proceeds, "do you doubt its existence, its nature, or degree; look to the character of this assembly, and the circumstances under which it is convened: give your attention to the history of the past, and be admonished by the novel and extraordinary spectacle which is presented to your view—do not close your eyes altogether to the fact, that this assembly is without parallel in the annals of the government; that we are freemen, and the representatives of freemen, who speak to you of our violated rights; that we have come from different, and distant parts of the Union, to join in demanding their restoration; that a consciousness of strength is the offspring of united counsel; and that our purpose is not the less firm, because it is announced to you peaceably, and in the spirit of conciliation."

The reports of the different committees of investigation, appointed by the opposition or tariff convention, which commenced its sittings at New York on the 26th of October, had not appeared in print when I quitted America.

Mr. Adams, a strong tariff man, and residing in the heart of the tariff, states, in his last 4th of July oration, speaking of the doctrine of "nullification," which, he says, "contains within itself an absurdity, importing a pretended right of one state in this Union, by virtue of her

sovereignty, to make that null and void which it pre-supposes to be null and void before," proceeds, by saying, "that it is a principle under which the pillars of the Union are tottering while he is speaking." On the other side, Mr. Calhoun, at the head of the anti-tariff party, and one of the cleverest men in America, in his "sentiments upon the subject of state rights and the tariff," says, that "whatever diversity of opinion may exist in relation to the principle, or the effect on the productive industry of the country of the present, or any other tariff of protection, there are certain political consequences flowing from the present which none can doubt, and all must deplore. It would be in vain to attempt to conceal, that it has divided the country into two great geographical divisions, and arrayed them against each other, in opinion at least if not in interest also, on some of the most vital of political subjects—on its finance, its commerce, and its industry—subjects calculated above all others, in time of peace, to produce excitement, and in relation to which the tariff has placed the sections in question in deep and dangerous conflict. If there be any point on which the (I was going to say southern section, but to avoid, as far as possible, the painful feelings such discussions are calculated to excite, I shall say) weaker of the two sections is unanimous, it is that its prosperity depends in a great measure on free trade, light taxes, economical and, as far as possible, equal disbursements of the public revenue, and an unshackled industry; leaving them to pursue whatever may appear most advantageous to their interests. From the Potomac to the Mississippi there are few, indeed, however divided on other points, who would not, if dependent on their volition, and if they regarded the interest of their particular section only, remove from commerce and interest every shackle, reduce the revenue to the lowest point that the wants of the government fairly required, and restrict the appropriations to the most moderate scale, consistent with the peace, the security, and the engagements of the public; and who do not believe that the opposite system is calculated to throw on them an unequal burthen, to repress their prosperity, and to encroach on their enjoyment. On all these deeply important measures the opposite opinion prevails, if not with equal unanimity, with at least a greatly preponderating majority in the other and stronger section, so much so that no two distinct nations ever entertained more opposite views of policy than these two sections do on all the important points to which I have referred," &c. &c. "The system," he adds in a note, "if continued, must end, not only in subjecting the industry

and property of the weaker section to the control of the stronger, but in proscription and political disfranchisement. It must finally control elections and appointments to offices, as well as acts of legislation, to the great increase of the feelings of animosity, and of the fatal tendency to a complete alienation between the sections.”

The remedy proposed by Mr. Calhoun appears exceedingly reasonable. In three years the national debt of the United States will be paid off, and the government will find itself in possession of a surplus revenue of 10,000,000 or 12,000,000 of dollars, chiefly arising from the tariff duties. The applications from the different states for its appropriation under the internal improvement system will be innumerable, and it will be impossible to grant them without adding a stimulus to old causes of jealousy, and giving birth to new ones. To adopt the system of dividing the money between the different states is admitted, on all hands, to be unconstitutional, not only because no such power is given by the articles of the constitution, but because the exercise of it would tend to render the individual states too dependent on the favour of the general government. Mr. Calhoun recommends, that the money should be left in the pockets of the people, and affirms that there is but one “effectual cure—an honest reduction of the duties to a fair system of revenue, adapted to the just and constitutional wants of the government, and that nothing short of this will restore the country to peace, harmony, and mutual affection.”

The example of good citizenship displayed by Massachusetts during the existence of the embargo in 1807, is now referred to as worthy of imitation by the southern states; a total stagnation of the trade of that state was the consequence of the Berlin decree, and the retaliatory orders in council of the British government; and in the opinion that the embargo was unconstitutional, the question was tried before the supreme court of the United States, who decided in favour of the authority of the general government. Massachusetts behaved with the best grace imaginable, conscious that there was no medium between submission and separation,—no alternative but acquiescence or disunion. Her behaviour might be imitated, but under very different circumstances. In the case of Massachusetts, the cause of the evil was understood: it was external: it could be removed; or rather would some day cease as a matter of course; but with South Carolina, the disease is internal, existing in the time of

peace, increasing, and most likely, beyond the reach of any but a temporary remedy.

The first intimation I had of the existence of the tariff was likely to have been a disagreeable one. When I landed at New York, I had with me an excellent double-barreled fowling-piece; and I was told that I must either pay thirty per cent. on its full value, or I could deposit it in safe-keeping at the custom-house till my return; and in the mean time I could purchase an American gun cheap; I was indebted to the liberality of the gentleman presiding at the head of the custom-house, who, upon hearing from a friend that I had not brought it to sell, but merely for my pleasure, politely and immediately gave me an order for it.

The climate of Washington has undergone a considerable alteration within the memory of those who have known it for the last forty years. Its healthiness has by no means increased as the forest has disappeared; on the contrary, the reverse effect has rather been produced. The real nature of a climate cannot be known till it has been rendered fit for the habitation of man; and no land can be said to be in that condition, till it has been partially cleared and cultivated. The process in some places renders the climate warmer, and in others it has the effect of producing more cold; so that it does not always follow that clearing is productive of beneficial results. Since the forests of the Pyrenees have been gradually cut down and destroyed, the south of France is not nearly so desirable a residence for invalids as it was formerly. In Germany, a good effect has been produced; but not so at Washington. The summer is still excessively hot, (the thermometer ranging above ninety in the shade), and the winter very cold: originally these two seasons almost divided the year between them; but now, the weather exhibits far more of the variableness of the climate of England. The vicissitudes of temperature are often painful, and frequently and rapidly produced by the most violent and piercing gusts of wind from the north-west. The cold of winter, although still very severe, has been much mitigated of late years. In 1780, the bay of the Chesapeake was solid ice from its head to the mouth of the Potomac; and in some places, at Annapolis for instance, from five to seven inches thick. In 1772, the snow in the district of Washington was nearly three feet deep, and in some places it drifted to the depth of ten or twelve. The length and severity of the winters have much abated; but still the climate, as I was informed by a

gentleman perfectly acquainted with the subject, has not become more healthy. In the year 1829, the average number of deaths for the last ten years, has been one in every fifty-three. The greatest mortality prevails in the month of August, and the cases are chiefly those of fever. It is owing to the malignity and greater variety of diseases, accidents, and privations, to which the poorer inhabitants of the more thickly peopled cities are liable, that the annual mortality at New York is calculated as one to fifty; and at Baltimore as one to forty-nine. In Charleston, South Carolina, it is as one to forty: the situation being more southerly, it is not so healthy as that of Washington.

Every part of the United States is said to be more or less unhealthy during the summer months; but the inhabitants of the northern and middle states, and of the high lands and ridges, excepting in the vicinity of water, enjoy a much purer air than that breathed by the inhabitants of the southern states, and the lower districts of the country. An American writer remarks, that "The intermitting fever which is confined to particular spots, seems to originate from the exhalations of marshes, and borders of stagnant waters, though it is a curious fact and worthy the attention of physicians, that families who live in the neighbourhood of these places enjoy good health, while others who inhabit the summit of the adjacent hill, are victims to this annually returning malady. When marshy places become dry, fish, insects, and decaying vegetable substances exposed to the action of a burning sun, generate those gaseous miasms which, absorbed by the body, produce weakness, sickness, and death. Ascending by their lightness they are probably carried by the winds to a neighbouring eminence, where settling, they form a sickly and noxious atmosphere." I have more than once heard it remarked, that the Americans of the present day are not such men as their fathers, the soldiers of the war of Independence. They can take as true an aim with a rifle, but cannot undergo the same fatigue, and are not so long lived, generally. The inhabitants of the more northern states of New England, are perhaps, exceptions; but in any given number of the inhabitants of Georgia, and the Carolinas for instance, there are not so many persons to be found of ninety years old and upwards, as among the same number of persons living in the country in England. I heard this from a gentleman on whose information I believed that I could rely: yet it is singular, that according to the census of 1830, the number of persons of a hundred years old and upwards, should be larger in the southern than in the

northern states. The middle states could boast of a larger number of whites of a hundred years old and upwards, than any other. New York in a population of 1,913,508 containing fifty-three, and Pennsylvania fifty-seven in a population of 1,347,672: the total number in the United States was 2654. The largest number in any one state was in Virginia, 479, but by far the greatest proportion of these are blacks. Mungo Park affirms that the negroes in Africa are not a long-lived race. Speaking of the Mandingoes, the general name for the inhabitants of the country watered by the Gambia, he says, "They seldom attain extreme old age. At forty, many of them become grey haired, and covered with wrinkles, but few of them survive the age of fifty-five or fifty." It is singular that they should attain a greater age in the United States. By the table which shows the number of persons of one hundred years old and upwards, it will be seen that the proportion of blacks of that age greatly exceeds that of the whites; but it may be remarked, that the ages of the blacks are not so well known as those of the whites; and the accuracy therefore of the census, as it respects the ages of this class, is less to be relied on. It may be remarked, that Dr. Ramsay, the historian of South Carolina, asserts, that those individuals who have been born and brought up in the northern states, and who have afterwards migrated to the south, are usually more robust, more capable of withstanding the climate, and are longer lived than the natives of the south. Certain it is, that the Americans in general have not the healthy look of the Englishman. The men are often tall, very powerful, particularly in Kentucky, and well proportioned; but their complexions are not unfrequently sallow, and climate-worn, with a countenance resembling that of a person just recovered from an illness. This is partly the consequence of the climate, partly of their mode of living and their love of ardent spirits, still fatally prevalent. I am speaking of traveller's fare when I say, that the tavern tables are always well and plentifully supplied; but no viands are thought so palatable as those that are swimming in melted butter. A beef steak that would be excellent if cooked *au naturel*, is almost invariably placed at the head of the table, and in this manner almost invariably spoiled. At breakfast the bread and cakes cannot be too new, or too hot; and fresh supplies arrive during the meal, which is usually despatched with the most extraordinary rapidity. At New York I once had the tablecloth whisked from under my plate by the impatient servants. The natural consequence is, an extreme prevalence of dyspepsia in all parts of the United States, which is

not lessened by the incredible quantity of soda water, sweetened with different syrups, which is consumed by the Americans during the hot weather. At Baltimore I have drank, I think, the finest soda water I ever tasted.

The inns, or taverns, as they are called, which I met with were generally good, particularly in the towns; those in the country, however, were sometimes exceedingly dirty and disagreeable. I have almost always found the greatest disposition on the part of the landlord to render them as comfortable as possible, and have very seldom failed in my application for a room with a single bed, some of them containing as many as four or five. The Americans think nothing of this. Upon one occasion, in Kentucky, where I had secured a single-bedded room, the landlord who appeared to have been surprised, and thought I must be ill, came up to me shortly afterwards, and most good-naturedly told me, that my room was ready: "As you're unwell, sir, I guessed you'd like to retire directly." The expense of living at the best inns in the United States varies from two to three dollars a day. For this sum a person is provided with a bed, and four meals at stated hours. A coffee-room in the hotel for eating and drinking at one's own time, is a luxury the Americans have not yet attained to; at least I do not remember to have seen one anywhere. I did not find the regular hours so troublesome as I expected, as the great heat rendered it impossible for weeks together to take any thing like severe exercise, excepting at a very early hour of the morning, or after six o'clock in the evening. I would instance Mr. Head's table at Philadelphia, as the best in the United States. There was a quiet gentlemanlike style about it, that I never saw surpassed, or hardly equalled, by a table d'hôte in any country. I wish I could speak as well of the bed-rooms in that respect; I much prefer those at Mr. Barnum's at Baltimore, and Mr. Gadsby's at Washington. Take it altogether, the Tremont at Boston, is by far the best hotel in the States. Ice is to be had in the greatest plenty in all parts of the United States; I have even found it as a luxury at my toilette. On the subject of eating ices, I found that nobody would touch a water ice, and that in general cream ices only were to be met with, even at the best shops.

The most fearful enemy of health is ardent spirits, which, by those who drink them at all, are taken at all hours, from four in the morning till twelve at night, and swallowed under the various and subdued appellations of

bitters, egg-nogg, mint-julep, and many others; all sounding watery enough to have captivated Sangrado himself. The Temperance Societies are an honour to the country. There are about 1000 of them in the United States, composed of 1,200,000 members, and affecting about 2,000,000 of individuals directly or indirectly. They have caused the suppression of 1000 distilleries, and 3000 retail stores. The members solemnly promise that they will not touch a drop of any kind of spirits: of course, the rules of the society are sometimes broken, particularly as they allow wine and brandy when ordered by the doctor. I have heard it observed by those who are unfriendly to these associations, that an individual who cannot abstain from spirits without belonging to a temperance society, will not refrain when he becomes a member; but there is a vast difference between the strength of a resolution made to oneself, and known only to oneself, and a promise solemnly and publicly given, where fulfilment is demanded by honour, the fear of shame, and the duty of example. It is always observed, that when a member of the society has once relapsed into his old habits, his course is one of recklessness and desperation. That the societies have done good is undeniable, by their influence on the wholesale trade in spirits at New York.

END OF VOL. I.

Manning and Smithson, Printers, London-house Yard, St. Paul's.

TRANSCRIBER'S NOTE

Except for those changes noted below, all misspellings in the text, and inconsistent or archaic usage, have been retained.

Inconsistent hyphenations have been left as is.

Page [50](#). "fifty cents. per annum" *replaced by* "fifty cents per annum".

Page [58](#). "fashionble" *replaced by* "fashionable".

Page [85](#). "cerous virginianus" *replaced by* "cervus virginianus".

Page [113](#). "enojoyment" *replaced by* "enjoyment".

Page [201](#). "represensatives" *replaced by* "representatives".

Page [205](#). "choise" *replaced by* "choice".

Page [208](#). "'the Cherokee case;' *replaced by* "'the Cherokee case;'".

Page [240](#). "40,000l," *replaced by* "40,000l.".

Page [252](#). Removed duplicated the across page boundary.

Page [274](#). "neighbonrhood" *replaced by* "neighbourhood".

*** END OF THE PROJECT GUTENBERG EBOOK SIX MONTHS IN
AMERICA, VOL. 1 (OF 2) ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.